This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

CITY OF BERKELEY

BERKELEY CITY COUNCIL REGULAR MEETINGS

April 28, 2026

WEBVTT

1
00:00:13.350 --> 00:00:24.339
Boardroom: Okay, hello everyone! Calling to order the Berkeley City Council meeting. Today is Tuesday, April 28th, 2026. It is 6.05 p.m. Clerk, can you please start us off?

2
00:00:26.910 --> 00:00:29.310
Boardroom: Councilmember Kistarwani? Here.

3
00:00:29.760 --> 00:00:31.699
Boardroom: Councilmember Taplin?

4
00:00:32.110 --> 00:00:34.080
Boardroom: Is currently absent.

5
00:00:34.900 --> 00:00:36.950
Boardroom: Councilmember Bartlett?

6
00:00:37.900 --> 00:00:38.690
Ben Bartlett: Present.

7
00:00:39.840 --> 00:00:40.700
Boardroom: Dragub?

8
00:00:41.500 --> 00:00:50.450
Boardroom: Present. O'Keefe? Here. Blackaby? Here. Unapara? Here. Humbert? Present. And Mayor Ishii? Here.

9
00:00:50.700 --> 00:00:52.149
Boardroom: Okay,

10
00:00:52.460 --> 00:01:00.630
Boardroom: Councilmember Bartlett is participating in the meeting remotely pursuant to the Just Cause exception in the Brown Act.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

11
00:01:00.740 --> 00:01:06.629
Boardroom: Quorum of the Council is participating in person at the noticed Physical meeting location?

12
00:01:08.060 --> 00:01:20.799
Boardroom: And, Councilmember Bartlett, if you could provide a brief general description of the circumstances relating to your need to appear remotely without disclosing any medical diagnosis or other confidential medical information?

13
00:01:22.440 --> 00:01:27.099
Ben Bartlett: Yeah, so there's a medical situation that I cannot disclose.

14
00:01:27.100 --> 00:01:37.069
Boardroom: Okay. And then please disclose if there is anybody in the room with you who is 18 years of age or older, and if so, what their relationship is to you.

15
00:01:37.780 --> 00:01:39.370
Ben Bartlett: I am alone at this time.

16
00:01:39.370 --> 00:01:39.990
Boardroom: Okay.

17
00:01:40.140 --> 00:01:48.240
Boardroom: And Councilmember Bartlett will participate through both audio and visual technology for the duration of the meeting, and we can proceed.

18
00:01:48.790 --> 00:01:54.719
Boardroom: And Mr. City Clerk, it looks like Councilmember Taplan is on as well. Oh, there is Councilmember Taplin, so we can mark.

19
00:01:55.010 --> 00:01:57.480
Boardroom: Councilmember Taplin as present.

20
00:01:58.130 --> 00:02:01.100
Boardroom: And Councilmember Taplin's.

21
00:02:01.200 --> 00:02:11.090

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: teleconference, his, location is noted on the agenda, so we do not need to do the just cause exception, script for him.

22
00:02:12.220 --> 00:02:12.950
Boardroom: Okay.

23
00:02:13.150 --> 00:02:34.940
Boardroom: Very good, thank you. We are now moving on to our ceremonial items, and today we have a proclamation for American Muslim Appreciation, excuse me, and Awareness Month, and Councilmember Lunapara has requested this proclamation and will be reading it. So if our representatives from CARE, if you want to come up to the podium, you can receive the proclamation.

24
00:02:38.950 --> 00:02:39.670
Boardroom: Okay.

25
00:02:40.310 --> 00:02:44.960
Boardroom: Recognizing April 2026 as American Muslim Appreciation and Awareness Month.

26
00:02:45.110 --> 00:03:02.710
Boardroom: Whereas the City of Berkeley takes great pride in supporting individual religious freedoms and is strengthened by the diverse religious, political, and cultural traditions and contributions of its diverse populations, including those that practice Islam, and whereas the history of Islam on this continent dates back to before the founding of the United States.

27
00:03:02.710 --> 00:03:14.659
Boardroom: Originating with enslaved Africans who brought their Muslim beliefs to the Americas, and whereas over 90,000 Muslims live in Alameda County and significantly contribute to the cultural, political, and economic fabric of our communities.

28
00:03:14.750 --> 00:03:32.050
Boardroom: And whereas the City of Berkeley is home to a variety of Muslim institutions, such as the Berkeley Masjid, a vital spiritual and community center for prayer and connection, Zaytuna College, the first Muslim liberal arts college in the United States, and other Muslim organizations, including the Berkeley Muslim Student Association.

29
00:03:32.050 --> 00:03:40.560

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: each providing support for Muslims. And whereas, it is critical to acknowledge and promote awareness of the invaluable contributions of Muslims in Berkeley and across the country.

30
00:03:40.650 --> 00:03:58.879
Boardroom: And whereas the Berkeley City Council acknowledges the importance of local government in advocating for justice and reaffirms that Muslims everywhere deserve to live in peace, dignity, and safety. Now, therefore, be it resolved that I, Adina Ishii, Mayor of the City of Berkeley, do hereby declare April 2026 as American Muslim Appreciation and Awareness Month.

31
00:04:03.970 --> 00:04:09.170
Boardroom: We have, members of CARE and the Berkeley Masjid here to present.

32
00:04:09.610 --> 00:04:21.340
Boardroom: Hello, Mayor Ishii and Council members. My name is Musa with CARE, the Council on American Islamic Relations, and we want to thank you all for recognizing American Muslim Appreciation and Awareness Month in Berkeley.

33
00:04:21.380 --> 00:04:30.919
Boardroom: This proclamation is especially meaningful as our Muslim communities have faced an unprecedented and unrelenting wave of Islamophobia and discrimination over the last several years.

34
00:04:30.920 --> 00:04:47.050
Boardroom: 2024 was previously the worst year of anti-Muslim hate and anti-Palestinian racism recorded in CARE's 30-year history, with a sharp rise in hate crimes and discrimination. And this trend has unfortunately only increased and continued through 2025 and into 2026.

35
00:04:47.050 --> 00:04:57.940
Boardroom: We have a federal administration that is openly and violently targeting our most vulnerable immigrant communities for speaking up about global justice, for opposing the genocide in Gaza, and for existing.

36
00:04:57.950 --> 00:05:09.520
Boardroom: 2025 saw powerful public officials try to tell our communities that American freedoms come with conditions, that they must look, speak, and worship in their approved ways, or that they do not belong.

37
00:05:09.520 --> 00:05:22.329

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: And this all has very real consequences for Muslim community members in Berkeley. And that is why today's proclamation is an important step in celebrating and cherishing your Muslim communities, whose contributions continue to strengthen Berkeley's civic.

38
00:05:22.330 --> 00:05:41.599
Boardroom: cultural, and economic life. We thank you for affirming that Muslims are woven into the fabric of Berkeley, especially in this critical moment. And we hope this proclamation serves as a meaningful next step, a catalyst for meaningful next steps, including adopting an ethical investment policy following the lead of Alameda County and the City of Dublin. Thank you so much.

39
00:06:36.660 --> 00:06:38.299
Boardroom: Thank you all so much.

40
00:06:38.500 --> 00:06:42.149
Boardroom: Okay, moving on… In our agenda…

41
00:06:42.580 --> 00:06:48.399
Boardroom: I have City Manager comments. Do you have any comments this evening, City Manager? I don't. Madam Mayor, thank you.

42
00:06:48.560 --> 00:06:50.180
Boardroom: Okay, thank you very much.

43
00:06:51.850 --> 00:06:57.690
Boardroom: Perfectly on cue, I was just about to say, and our Madam City Auditor,

44
00:06:58.260 --> 00:06:59.670
Boardroom: I'll let you take it away.

45
00:06:59.810 --> 00:07:06.650
Boardroom: Thank you so much, Mayor. Good evening, Mayor and Council, members of the public.

46
00:07:06.660 --> 00:07:20.779
Boardroom: I just want to thank you all for having me here today. We're presenting on our financial condition audit, which is in the agenda packet. My name is Jenny Wong, the City Auditor, and I'm joined by my team, Caitlin Palmer, Performance Audit Manager.

47

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:07:21.230 --> 00:07:33.370
Boardroom: And, we have our performance auditor, Manami Suenaga, online, and Katie Wysong is here to help us with some technical support. So, with that, I'm gonna turn it over to Caitlin.

48
00:07:34.560 --> 00:07:41.209
Boardroom: Thank you all for having us here tonight. On April 8th, our office released an audit of Berkeley's financial condition.

49
00:07:41.340 --> 00:07:58.099
Boardroom: And we did this audit to provide an update to our first financial condition that we issued in 2022, highlighting the city's financial strengths and risks in both the near and the long term. And our aim was to provide a comprehensive financial context to support the current budget deliberations.

50
00:07:58.210 --> 00:08:02.870
Boardroom: We also wanted to make complex financial information easier to understand.

51
00:08:02.970 --> 00:08:13.429
Boardroom: And on that note, in the interest of time, I'll just be providing some highlights of these financial concepts, and for those of you out there who would like more explanation or definitions, please see the full report on our website.

52
00:08:14.840 --> 00:08:24.669
Boardroom: We assess Berkeley's financial condition by looking at a variety of indicators, such as revenues and expenses, net pension and retiree healthcare liabilities, and others.

53
00:08:24.880 --> 00:08:34.209
Boardroom: Our scope covered 10 years from fiscal year 2016 to fiscal year 25, and we adjusted for inflation and report everything in 2025.

54
00:08:34.390 --> 00:08:42.970
Boardroom: And please note that this is a high-level overview, where we explore the causes of some of the financial trends, but we didn't do an in-depth analysis of every trend.

55
00:08:44.710 --> 00:09:01.099
Boardroom: Overall, we found that Berkeley is facing ongoing challenges with its long-term financial condition, which is similar to our 2022 audit. And as you're all aware, in the near term, the city faces a

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

structural budget deficit, which poses additional risk to the city's financial sustainability over time.

56
00:09:01.440 --> 00:09:06.769
Boardroom: And we report on many financial indicators, but tonight, I'll highlight just a few key points.

57
00:09:08.230 --> 00:09:20.170
Boardroom: First, despite the budgetary challenges, the city's actual revenues from governmental activities generally covered actual expenses over the past 10 years, except for in fiscal year 2020.

58
00:09:20.250 --> 00:09:34.520
Boardroom: Revenue increased overall, primarily from growth in revenues from property taxes, state and local taxes, and investment earnings. And of all revenue sources, investment earnings had the largest percentage growth.

59
00:09:34.850 --> 00:09:40.529
Boardroom: The Finance Department updates Council on the City's investment performance through quarterly investment reports.

60
00:09:40.660 --> 00:09:50.090
Boardroom: And used to provide an annual investment report to Council that covered the city's investment rate of return for at least the past 5 fiscal years.

61
00:09:50.190 --> 00:09:53.430
Boardroom: But this type of information is no longer provided.

62
00:09:55.080 --> 00:10:11.339
Boardroom: And when we look at more recent trends, since our audit in 2022, revenues for governmental activities slightly decreased, while expenses increased. And decreased revenues in these years were primarily due to less revenue from grants and contributions, such as state and federal funds.

63
00:10:13.210 --> 00:10:29.300
Boardroom: Given the city's structural deficit, we looked at its past budgetary practices to better understand what led to the current situation. And we found that for years, the cities used one-time balancing measures to address its structural deficit, rather than making structural changes.

64

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:10:29.620 --> 00:10:36.080
Boardroom: And so, one-time solutions like this that rely on other funds may be appropriate in the short term.

65
00:10:36.350 --> 00:10:44.829
Boardroom: Repeating this over time can delay addressing the structural deficit and put the financial sustainability of these other funds at risk.

66
00:10:45.350 --> 00:10:55.720
Boardroom: For example, to help balance the fiscal year 25 budget, the city redirected $4.7 million that was intended for the workers' compensation fund to the general fund.

67
00:10:55.960 --> 00:11:02.170
Boardroom: And at the time, the workers' compensation program was already about $2 million short of covering its liabilities.

68
00:11:02.650 --> 00:11:10.040
Boardroom: One-time measures aren't sustainable when ongoing expenditures are growing. I'm sorry, Caitlin, can you just speak up a bit? It's a little hard to hear you.

69
00:11:10.820 --> 00:11:13.080
Boardroom: Yes. Is this better?

70
00:11:14.020 --> 00:11:26.620
Boardroom: One-time measures aren't sustainable when ongoing expenditures are growing. According to the Budget Office, salaries, pension costs, overtime pay, and public liability insurance have increased in recent years.

71
00:11:26.900 --> 00:11:41.470
Boardroom: We also found that the city used one-time measures, such as transfers from other funds, to help balance enterprise funds with structural deficits. And these enterprise funds are supported by fees for services and are intended to primarily cover their costs.

72
00:11:41.880 --> 00:11:51.630
Boardroom: City Management is now using some more sustainable strategies to develop the fiscal year 27 and 28 budget, as demonstrated in their proposed budget balancing plan.

73
00:11:51.630 --> 00:12:04.810

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: For example, the city asked departments to evaluate current fees for funds such as enterprise funds, and this is a great step, but we note that there isn't a citywide policy to regularly evaluate and adjust enterprise fees.

74
00:12:05.040 --> 00:12:08.270
Boardroom: To help keep up with expenses going forward.

75
00:12:08.980 --> 00:12:15.149
Boardroom: And this and other more sustainable strategies have not yet been formally adopted as policies for the future.

76
00:12:16.430 --> 00:12:27.009
Boardroom: Next, looking at pension and retiree healthcare, we found that the city's net pension liability is still high risk at about $695 million as of fiscal year 25.

77
00:12:27.400 --> 00:12:35.149
Boardroom: And net pension liability is the difference between the estimated cost of benefits and the assets the city has set aside to pay for those benefits.

78
00:12:35.630 --> 00:12:43.130
Boardroom: And Berkeley's not alone in this. Unfunded pension liabilities pose a challenge for many California cities, and can impact

79
00:12:43.510 --> 00:13:00.960
Boardroom: Credit ratings, and may result in CalPERS requiring higher contributions in the future. And according to the Government Finance Officers Association, Berkeley would have the highest bond rating as a result, cheaper borrowing if it weren't for the size of its pension liabilities.

80
00:13:01.620 --> 00:13:20.140
Boardroom: The city also provides retiree healthcare coverage as a benefit, and some good news here is that the city has made progress in decreasing its net retiree healthcare liability to about $43 million in 2025. So, this is a decrease of more than $100 million over 10 years.

81
00:13:21.930 --> 00:13:30.839
Boardroom: And as we reported in 2022, the city is saving for future pension payments by contributing to an IRS Section 115 trust.

82
00:13:31.070 --> 00:13:36.390

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: However, the city hasn't consistently been able to meet its annual contribution goal.

83
00:13:36.870 --> 00:13:47.530
Boardroom: And also, the city used $3 million from the trust to cover required CalPERS pension payments to help balance the fiscal year 2025 general fund budget.

84
00:13:47.710 --> 00:13:58.340
Boardroom: And we noted that the City's, City Council's fiscal policies don't explicitly require the City to replenish the trust as soon as feasible after the funds are withdrawn.

85
00:14:00.360 --> 00:14:14.499
Boardroom: Another long-term risk area is the city's unfunded capital and deferred maintenance needs. These grew to $1.8 billion in fiscal year 24, which is up from the $1.2 billion that we reported in 2022.

86
00:14:14.770 --> 00:14:21.310
Boardroom: And without sufficient investment, capital needs will continue to grow and get more expensive to address down the line.

87
00:14:21.930 --> 00:14:40.800
Boardroom: In fact, while the city has increased its spending on capital assets since fiscal year 16, this hasn't been enough to cover the unfunded capital needs. And so, the city will likely need to raise new funding to keep pace with the investments needed to maintain or update its aging infrastructure.

88
00:14:41.030 --> 00:14:58.049
Boardroom: General obligation bonds are one way that cities finance capital infrastructure projects, and as you're all aware, the city is considering placing a $300 million general obligation bond on… a measure on the 2026 ballot to help address some of these unfunded capital needs.

89
00:14:59.070 --> 00:15:16.159
Boardroom: We noted that Berkeley's capital improvement program, it's the city's 5-year capital budget plan, doesn't include advanced planning to determine if and when the city should propose new funding mechanisms, such as bond measures, to address these long-term capital needs.

90
00:15:16.390 --> 00:15:28.649
Boardroom: And advanced planning around new funding options could help the city regularly anticipate and communicate to the public about these proposals, and the capital funding needs that they plan to address.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

91
00:15:28.780 --> 00:15:40.159
Boardroom: Other jurisdictions, like San Francisco and Berkeley Unified School District, do do this more advanced planning around new funding options, and they have 10-year capital financing plans.

92
00:15:43.200 --> 00:15:49.449
Boardroom: Our audit includes 9 recommendations to address the risks we identified, and I'll highlight a few of them here.

93
00:15:49.840 --> 00:16:00.520
Boardroom: We recommend that City Management propose a fiscal policy to Council that formalizes the use of more sustainable budget strategies to help prevent future structural deficits.

94
00:16:00.690 --> 00:16:09.529
Boardroom: We also recommend that the City adopt a policy to regularly assess enterprise fees and establish reserves as appropriate for each enterprise fund.

95
00:16:10.240 --> 00:16:21.959
Boardroom: We recommended that Finance provide investment reports to Council that include the City's investment return rate for at least the past 5 years to provide clear information about investment performance trends.

96
00:16:22.330 --> 00:16:34.470
Boardroom: And we recommend that the City amend its fiscal policies to ensure that funds that are withdrawn from the Section 115 Trust are replenished, so the City's more prepared to meet its future pension obligations.

97
00:16:34.630 --> 00:16:48.709
Boardroom: And lastly, we recommended that the City develop a capital financing plan that includes proposals for future funding sources, such as… such as bonds, to help address the City's growing unfunded capital needs.

98
00:16:49.710 --> 00:17:06.460
Boardroom: And City Management agreed, or partially agreed, to our findings and recommendations, and provided an action plan to address those recommendations, and right tonight, we ask that Council request that City Management report back in a year with an update on the implementation of these recommendations.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

99
00:17:07.440 --> 00:17:17.420
Boardroom: And to conclude, I'd like to thank the City Manager, the Budget Office, the Finance Department, Public Works, and the City Attorney for their contributions to this audit. Thank you.

100
00:17:18.380 --> 00:17:37.119
Boardroom: Thank you very much. I really appreciate you sharing all this information with us, and I would be interested in seeing a report back in a year, on this audit and any of the changes, as you've suggested. I think that would be a good idea for us. I do want to give my colleagues time if you do want to ask questions.

101
00:17:37.940 --> 00:17:38.700
Boardroom: Anyone?

102
00:17:41.280 --> 00:17:56.979
Boardroom: Yes, Councilmember Blackaby. Thanks, Madam Mayor, and thank you to the auditor team for all your hard work on this, and sort of synthesizing the numbers and kind of presenting some of the key findings. I just had a couple questions on a few of the slides.

103
00:17:57.080 --> 00:18:03.369
Boardroom: On slide 5, where you're talking about the revenues and expenses, by year over the past 10 years.

104
00:18:03.510 --> 00:18:21.859
Boardroom: You know, we've talked a lot, and we know we are facing this sort of structural deficit in the general fund that we need to deal with, and we are dealing with it in this process. So, what I'm trying to… how do we reconcile the way these numbers are showing that, like, we're actually, you know, if you look at total government activities, revenues, and expenses.

105
00:18:22.030 --> 00:18:39.969
Boardroom: We've done a pretty good job of tracking our expenses underneath revenue, so what's the… what's the disconnect in terms of what we're facing and what these numbers show? Yeah, these numbers in this graph show actuals, so… and the, budget… the structural deficit is something from the perspective of the budgeting process.

106
00:18:40.020 --> 00:18:43.400
Boardroom: So anticipating that ongoing revenues and expenses aren't

107
00:18:43.570 --> 00:18:53.749

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: balancing. And so, through one-time balancing measures that the city has taken, and then the actual reality that occurs in revenues and expenses.

108
00:18:53.910 --> 00:19:04.229
Boardroom: This is showing what actually happened, which is, as a result of the budget process working to balance. The city is legally required to pass a balanced budget. Got it.

109
00:19:04.360 --> 00:19:09.039
Boardroom: Because in some ways, like, it's not even, you know, we're $40 million to the good last year.

110
00:19:09.160 --> 00:19:17.259
Boardroom: $24 million to the good the year before, so it's not like we're just eking it out. Like, it's like we're… we have a pretty healthy… so that's… that's…

111
00:19:17.900 --> 00:19:34.539
Boardroom: So I'm just trying to figure out what we can learn from this. Does that mean that, you know, our budget process isn't fully accommodating anticipated revenues, or how would you attribute the difference? Yeah, I think one way to think about this is that

112
00:19:34.540 --> 00:19:41.140
Boardroom: These are the actual revenues and actual expenses, and so there could be expenses that were not…

113
00:19:41.270 --> 00:19:50.639
Boardroom: Or there could be potential expenditures that the city would have liked to spend money on, but then couldn't, because,

114
00:19:50.780 --> 00:19:54.540
Boardroom: Because of the deficit, and because, you know.

115
00:19:55.040 --> 00:20:00.899
Boardroom: we have salary savings, I mean, there's a whole host of other reasons why that line isn't

116
00:20:01.470 --> 00:20:05.109
Boardroom: the opposite way, or just meeting. So,

117
00:20:05.350 --> 00:20:23.580

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: I think you mentioned, too, and we have sensitivity that, like, you know, our… the availability of grant funding, we can't necessarily count on, going forward, maybe in the way that we saw in previous years. That's a consideration. Is there also part of this, which is some of this money is also being seen in the enterprise funds and not the general fund? Is that also a bit of this?

118
00:20:24.480 --> 00:20:25.160
Boardroom: Okay.

119
00:20:25.430 --> 00:20:38.540
Boardroom: On… thank you. On slide 7, about the, net pension liability, my main question is, like, what should our goal be? Because I think, you know, it's unrealistic and also not appropriate.

120
00:20:38.660 --> 00:20:46.340
Boardroom: for our goal to be zero, right? Because this is our total liabilities of people who are currently employees and may not be retiring for 30 years.

121
00:20:46.390 --> 00:21:04.160
Boardroom: And so to have assets fully set aside today for something that we're not gonna be on the hook for for 30 years in my program. So, so we know that this… the net pension liability is high, but it's also not the difference between $694 million and zero, right? There's some other number that's probably the target. Do we have any rough idea of… or is that…

122
00:21:04.240 --> 00:21:16.949
Boardroom: worth more work to think about what that target should be. Yeah, there's two ways to look at this. One is that CalPERS is trying to get cities to an appropriate… what they consider to be appropriate levels of…

123
00:21:17.120 --> 00:21:33.680
Boardroom: funding for the liabilities by adjusting the contributions that they're requesting from cities. Another way to look at this, the city, or the state auditor had a dashboard, it's no longer available, but they looked at, I believe it was…

124
00:21:34.000 --> 00:21:51.090
Boardroom: being, like, 80% funded or higher as low risk. I don't remember all of the categories, and I can follow up with you about that. But that's a benchmark out there as well that might be useful for the city to consider. There's also a middle, a mid-level risk, and Berkeley is considered high risk. Yep.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

125
00:21:51.150 --> 00:22:02.960
Boardroom: Got it. And, if you look at page 31, we do look at the funded ratio of the pension plans of Berkeley compared to some of the other cities. Got it. And note that Berkeley is,

126
00:22:03.420 --> 00:22:15.210
Boardroom: you know, we're at 66%, and Santa Clara is at 63%, so they're even lower. Oakland is close at 68%,

127
00:22:15.340 --> 00:22:29.080
Boardroom: Pasadena, 74, Long Beach, 78, Santa Monica, 78. So, there, you know, it's a range. Berkeley's not alone in this… on this issue, but, we do know that this is an area of risk for Berkeley.

128
00:22:29.160 --> 00:22:39.789
Boardroom: Perfect, okay, so that helps. Last question is on the, on the capital, the unfunded capital deferred maintenance, the $1.8 billion. Similar question, which is sort of,

129
00:22:40.320 --> 00:22:55.600
Boardroom: You know, and you showed how it's sort of gone… our unfunded capital and deferred maintenance has gone from $600 million 8 years ago to about $1.8 billion now, and we've been investing anywhere from $47 million to $90 million a year to try and make a dent.

130
00:22:56.990 --> 00:23:01.419
Boardroom: again, I know this is another hard question, but I'll put it out there, and happy to have a conversation down the road.

131
00:23:01.590 --> 00:23:06.609
Boardroom: You know, what do we need to be investing on an annual basis to kind of bend the curve?

132
00:23:06.720 --> 00:23:17.510
Boardroom: Because clearly, to your point, we've not been investing enough on an annual basis. It's like, the number… our total backlog is still growing, but it would be really…

133
00:23:17.540 --> 00:23:29.719
Boardroom: helpful to have a sense as we go to… out to the voters, potentially with this ballot measure, and we're seeking more bond support, like, how much do we need to be investing on an annual basis in capital to just…

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

134
00:23:30.320 --> 00:23:31.729
Boardroom: Not make the problem worse.

135
00:23:31.830 --> 00:23:38.819
Boardroom: And it might… your report may not have that, but that's a number I would love to, at some point, for us all to figure out and get to.

136
00:23:38.820 --> 00:23:54.170
Boardroom: Yeah, that would be worth looking… we didn't look into that in detail, that could be a whole audit on its own. Yeah, I know, it's hard. Right, and one way to look at this is nearer-term investments, or ongoing investments, proactive maintenance.

137
00:23:54.170 --> 00:23:58.500
Boardroom: It's cheaper in the long run than rehabilitation replacement.

138
00:23:58.500 --> 00:24:05.079
Boardroom: So, yeah, we didn't look at that in detail, but that would be… Okay, so I'll leave it out there with staff, this is, you know…

139
00:24:05.120 --> 00:24:15.519
Boardroom: much more, fertile ground to cover in the coming months, but thank you so much for just illuminating a lot of these and giving us a lot to think about, and I really appreciate the effort here, so thank you.

140
00:24:15.700 --> 00:24:19.179
Boardroom: Thank you, great questions, Councilmember. Councilmember O'Keefe.

141
00:24:21.970 --> 00:24:29.939
Boardroom: Thank you so much for this presentation and all the work that went into this audit. It's really very important work and not the sexiest thing, so I really appreciate it.

142
00:24:30.210 --> 00:24:36.960
Boardroom: My question… I have one question that's sort of, maybe,

143
00:24:37.640 --> 00:24:48.479

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: bouncing off of Councilmember Blackaby's question about reducing our unfunded pension liability, I was wondering, it caught my ear when you talked about the,

144
00:24:49.110 --> 00:24:56.300
Boardroom: possibility of getting a higher bond rating if our pension liability was less, and I'm wondering, like, if you have a sense of how much

145
00:24:56.420 --> 00:25:03.949
Boardroom: it would take reducing it, like, how much would we have to reduce it? Like, is that really within reach, or would we have to have zero, which, you know, is ridiculous.

146
00:25:04.290 --> 00:25:20.339
Boardroom: Or if we just decreased it a little bit, could we get a higher rating? I don't know if the credit raters, I can't remember the source for that. I don't remember if the credit raters assessed that. I don't think they went into that level of detail. Berkeley is at the second highest, bond rating, which is pretty good.

147
00:25:20.470 --> 00:25:37.959
Boardroom: So I don't know what the number would be. I think it's a qualitative assessment that they do. So yeah, I don't have that number. Okay, I just, I guess I'll just name my curiosity. It would be interesting. If we were close, that would make it a lot more worth it, because then, of course, we could save money on the other end of that as well, so thanks for highlighting that.

148
00:25:39.080 --> 00:25:41.879
Boardroom: Thank you, Councilmember, or Vice Mayor Trey Gob.

149
00:25:43.070 --> 00:25:48.739
Boardroom: Thank you so much. Again, really appreciated this important report.

150
00:25:49.080 --> 00:26:00.590
Boardroom: I have a few… questions. My first question is… Actually, I think… on the… First…

151
00:26:02.430 --> 00:26:18.629
Boardroom: On the slide with revenues and expenses, something that caught my attention is there appeared to be an inverse relationship year over year between revenues and expenses, and I was wondering if you could speak to that.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

152
00:26:23.120 --> 00:26:30.580
Boardroom: Two points that might lead to this, are fiscal year 2020,

153
00:26:30.900 --> 00:26:34.789
Boardroom: Where this is the one year where revenues exceed expenses.

154
00:26:35.300 --> 00:26:44.989
Boardroom: There were a lot of funding shortfalls related to the COVID pandemic that led to this data point. And in fiscal year 2022,

155
00:26:45.180 --> 00:26:53.899
Boardroom: This was related to, I… I don't wanna…

156
00:26:54.710 --> 00:27:04.339
Boardroom: We didn't look at the relation… I can't… I don't think I can speak to the inverse relationship. I think this was related to, I'm gonna ask Monami if she…

157
00:27:04.580 --> 00:27:11.150
Manami Suenaga: Yeah, I'm on the line. It's related to federal funding received, for the American Rescue Plan Act.

158
00:27:11.570 --> 00:27:18.520
Manami Suenaga: So that's why there's the increase in governmental revenues, between fiscal year 21 to 22.

159
00:27:20.290 --> 00:27:30.330
Boardroom: Thank you, and I guess my question is broader than just that time period. It is more pronounced, for sure, in 21-22 with the ARPA funding, but…

160
00:27:30.440 --> 00:27:35.240
Boardroom: It looks like… sort of…

161
00:27:35.350 --> 00:27:39.079
Boardroom: Year over year, for any number of years.

162
00:27:39.560 --> 00:27:45.139
Boardroom: As expenses go up, revenues go down, and vice versa.

163

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:27:45.720 --> 00:27:53.999
Boardroom: Yeah, there's different factors that lead to the changes in both of these trend lines. Yeah, I'm not sure…

164
00:27:55.090 --> 00:27:57.250
Boardroom: How to quickly reconcile that.

165
00:27:57.670 --> 00:28:02.210
Boardroom: Okay, yeah, just curious. I also…

166
00:28:03.220 --> 00:28:11.510
Boardroom: This is a little esoteric, but in the… Report on page 11.

167
00:28:11.700 --> 00:28:14.380
Boardroom: There was an other category.

168
00:28:15.050 --> 00:28:17.699
Boardroom: That showed a decline.

169
00:28:22.310 --> 00:28:30.540
Boardroom: This is in… under Figure 8, personnel expenditures by category. I was curious what was in that other category.

170
00:28:32.710 --> 00:28:41.319
Boardroom: It includes life insurance, commuter benefits, terminal payout, contributions to the workers' compensation fund, and other fringe benefits.

171
00:28:46.340 --> 00:28:47.260
Boardroom: Okay.

172
00:28:47.870 --> 00:28:55.310
Boardroom: Because I… in the know to… oh, I see now. Okay, thank you.

173
00:28:55.750 --> 00:29:04.080
Boardroom: And I just noticed, obviously, it, it's not a significant decline, but it, you know,

174
00:29:05.250 --> 00:29:15.230
Boardroom: everything adds up. $16 million, that's $60 million that could be repurposed elsewhere, so. Okay,

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

175
00:29:16.760 --> 00:29:24.579
Boardroom: I had a question on, back on the slide with the net pension and retiree healthcare liabilities.

176
00:29:24.900 --> 00:29:27.760
Boardroom: And…

177
00:29:27.940 --> 00:29:43.679
Boardroom: I did want to uplift, the decrease in the net retiree healthcare liability pretty significantly. I was wondering what factors may have led to that, and…

178
00:29:43.810 --> 00:29:48.179
Boardroom: More broadly, what is the,

179
00:29:49.080 --> 00:29:56.920
Boardroom: methodology by which the city pays off, these liabilities? Is it a…

180
00:29:57.250 --> 00:30:05.969
Boardroom: Waterfall model, where, you know, you pay off one, and then, you go to the next, and the next.

181
00:30:06.080 --> 00:30:08.589
Boardroom: So I'm wondering if just…

182
00:30:08.700 --> 00:30:15.180
Boardroom: If this could be a good model to continue to make a dent in paying off debt.

183
00:30:15.630 --> 00:30:17.829
Boardroom: At least some of the liabilities.

184
00:30:19.670 --> 00:30:26.689
Boardroom: For the latter question, I think that would be a good question for the finance department. We can get back to you.

185
00:30:27.520 --> 00:30:30.600
Boardroom: We didn't look at that in detail.

186
00:30:31.080 --> 00:30:40.849

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: And your first question was about what the factors in the OPEB reduc- liability risk reduction.

187
00:30:41.110 --> 00:30:44.310
Boardroom: Manani, do you want to answer this one?

188
00:30:45.600 --> 00:30:56.609
Manami Suenaga: Yeah, for net retiree healthcare liability, that decreased primarily due to, net investment income for these, retiree health care.

189
00:30:56.790 --> 00:31:05.299
Manami Suenaga: Liabilities, the net investment income had increased within the period, so that helped explain the liability decrease.

190
00:31:07.860 --> 00:31:19.409
Boardroom: Okay, that is helpful. Broadly, these are all very important recommendations, and I recognize,

191
00:31:19.650 --> 00:31:26.179
Boardroom: The city, will, for some time now, have to.

192
00:31:26.350 --> 00:31:30.380
Boardroom: Try to do this with increasingly more limited resources.

193
00:31:30.430 --> 00:31:47.259
Boardroom: So I'm wondering, of these, excellent recommendations, which ones would you, prioritize? Maybe if you could pick the top 3 where,

194
00:31:48.000 --> 00:31:53.630
Boardroom: If we don't do them, there would be very significant impacts down the line.

195
00:31:59.670 --> 00:32:07.359
Boardroom: We haven't prioritized them, but my first thought would be that focusing on ones that are

196
00:32:07.740 --> 00:32:10.309
Boardroom: That would affect,

197
00:32:10.680 --> 00:32:19.539

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: revenue generation would be beneficial, such as evaluating enterprise fees and establish… establishing reserves for those funds. That doesn't really…

198
00:32:19.890 --> 00:32:29.919
Boardroom: Reserves don't… aren't part of generating revenue, but making sure that the funds are sustainable and healthy, as strengthened as possible.

199
00:32:30.470 --> 00:32:36.579
Boardroom: And… recommendations related to planning, such as the capital financing plan.

200
00:32:36.700 --> 00:32:40.459
Boardroom: And formalizing the use of more sustainable budget strategies.

201
00:32:40.880 --> 00:32:44.599
Boardroom: To develop future budgets to…

202
00:32:45.280 --> 00:32:48.409
Boardroom: Avoid, structural deficits in the future.

203
00:32:50.560 --> 00:33:01.170
Boardroom: Thank you so much, and, I would, just add my interest, I think the mayor spoke about this to…

204
00:33:01.420 --> 00:33:12.220
Boardroom: Yeah, getting an annual, report from the city manager, about progress towards these goals,

205
00:33:12.900 --> 00:33:16.239
Boardroom: I highlighted on my list,

206
00:33:16.800 --> 00:33:31.160
Boardroom: providing, investment reports to the Council. That includes the city's return rate for at least the past 5 fiscal years, in line with some of the other jurisdictions you, looked at.

207
00:33:31.860 --> 00:33:35.980
Boardroom: Formalizing, a requirement,

208
00:33:36.460 --> 00:33:50.530

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: that the city must replenish the Section 115 trust after funds are withdrawn, and developing a capital financing plan that proposes future funding sources beyond, what exists now. Thank you.

209
00:33:52.000 --> 00:33:59.749
Boardroom: Thank you very much. Do you have a comment, Councilmember Lunapara? Yeah, I just really wanted to thank the auditor and her team for this work.

210
00:34:00.170 --> 00:34:05.110
Boardroom: Especially at this time, I think it's very, it's very, very useful for us to… to look…

211
00:34:05.620 --> 00:34:11.029
Boardroom: take a look back and understand, the structure of these issues. So, thank you.

212
00:34:11.590 --> 00:34:15.990
Boardroom: Thank you. Yeah, thank you very much. Councilmember Humbert, did you want to add something?

213
00:34:16.380 --> 00:34:27.969
Boardroom: Yes, thank you, Madam Mayor. I just wanted to thank Madam City Auditor and your team for all this really hard work, and this is such a timely, report. I really appreciate it. Thank you.

214
00:34:28.659 --> 00:34:42.869
Boardroom: Absolutely. I will add my thanks as well, and say thank you all so much for presenting, and also for doing this, entire report. I find it very helpful for us as we're thinking about the budget. So, thank you very much. Okay, anyone else?

215
00:34:43.489 --> 00:34:47.599
Boardroom: Alright, I think that's it then. Thank you so much for your, for your presentation.

216
00:34:48.719 --> 00:34:55.229
Boardroom: Thank you. Okay, so we now have, public comment on non-agenda matters.

217
00:35:01.870 --> 00:35:05.760
Boardroom: Okay, I'll draw names from the…

218

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:35:06.150 --> 00:35:10.220
Boardroom: For the in-person attendees, and then also if you are…

219
00:35:10.620 --> 00:35:22.819
Boardroom: attending remotely, this is the time to raise your hand on Zoom for non-agenda comments only, for, again, for items that do not appear on the agenda.

220
00:35:24.290 --> 00:35:35.409
Boardroom: So for… in-person… comments… We have 3 cards here.

221
00:35:36.180 --> 00:35:43.700
Boardroom: We have, steven Alpert… Rolfell and Celeste Marks.

222
00:35:45.210 --> 00:35:48.300
Boardroom: So, come forward, and any… Order?

223
00:36:00.050 --> 00:36:01.029
Boardroom: Two minutes.

224
00:36:03.980 --> 00:36:05.000
Boardroom: Good evening.

225
00:36:05.110 --> 00:36:06.800
Boardroom: I'm Dr. Steven Alpert.

226
00:36:07.040 --> 00:36:14.029
Boardroom: I have forwarded links and executive summaries of three recent publications on housing affordability to all city officials.

227
00:36:14.350 --> 00:36:17.299
Boardroom: The titles of these publications are shown here on this poster.

228
00:36:17.830 --> 00:36:21.339
Boardroom: All three publications examine and dismiss a core tenet

229
00:36:21.450 --> 00:36:26.270
Boardroom: That excessive regulation is responsible for the housing affordability crisis in the United States.

230

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:36:26.550 --> 00:36:37.630
Boardroom: The Buchholz study, in particular, published by the London School of Economics, analyzed real-world data from San Jose and San Francisco. As shown in the upper portion of this table.

231
00:36:38.020 --> 00:36:52.449
Boardroom: even under very optimistic, overly optimistic conditions, in our areas, it takes about 20 years for newly built market rate housing to eventually filter down to become affordable. Whereas if historical data…

232
00:36:52.920 --> 00:36:54.709
Boardroom: It takes over a hundred years.

233
00:36:56.690 --> 00:37:03.440
Boardroom: The details regarding these assumptions and equations underlying this data are on pages 12 and 14 of the study, which I forwarded to you.

234
00:37:03.940 --> 00:37:14.649
Boardroom: Note that the number of years before market-rate housing becomes affordable is longer in the San Francisco Bay Area compared to metropolitan New York, Los Angeles, Washington, D.C, or Boston.

235
00:37:15.240 --> 00:37:25.219
Boardroom: These findings, quote, illustrate that interventions focused on market rate supply alone are unlikely to generate widespread affordability at any meaningful time frame.

236
00:37:25.820 --> 00:37:31.059
Boardroom: A publication by the Georgetown Laws Center on Poverty and Inequality concludes, quote.

237
00:37:31.310 --> 00:37:39.080
Boardroom: Addressing housing instability for lower-income households requires comprehensive strategies beyond a reliance on market-rate supply.

238
00:37:39.320 --> 00:37:53.730
Boardroom: Despite these findings, during a recent Zoom quarters listening session, Councilmember O'Keefe stated, quote, I believe that housing affordability can be met through market-rate housing. It is something that I'm grounded in.

239
00:37:54.030 --> 00:38:04.719

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Distressingly, the mayor and some members of this council willfully ignore well-documented, real-world data from internationally recognized housing experts

240
00:38:04.870 --> 00:38:15.850
Boardroom: And instead, substitute your own, unfounded, discredited, yummy convictions for your comment. Your time is up. Thank you. Next is Rolf Bell.

241
00:38:25.100 --> 00:38:29.000
Boardroom: Good evening, I'm Rolf Bell, a 26-year resident.

242
00:38:29.500 --> 00:38:34.000
Boardroom: I'm a 26-year resident of Berkeley and a business owner. Thank you for the extra 2 seconds.

243
00:38:34.120 --> 00:38:47.439
Boardroom: In the last two months of 2024, at the corner of Bancroft Way and 6th Street, all four corners were torn up, and a total of 16 signal lights were installed, and the entire intersection reconfigured.

244
00:38:47.570 --> 00:38:54.909
Boardroom: There are 30 small businesses and 16 residents directly impacted. None of them received a notice.

245
00:38:55.160 --> 00:38:58.569
Boardroom: A traffic light makes the pedestrian crossing safer.

246
00:38:58.860 --> 00:39:06.559
Boardroom: But 3 of the 4 left turn lanes make cycling more dangerous and rob 30 businesses and 16 residences of essential parking.

247
00:39:06.890 --> 00:39:17.109
Boardroom: We find it bizarre that our council member and our mayor haven't seemed to find the time to meet with us, and find a resolution that is better for cyclists, better for residents, and better for business.

248
00:39:17.290 --> 00:39:23.339
Boardroom: Now we ask you to make the time for us, along with the traffic engineer, and help us correct this over-designed…

249
00:39:23.480 --> 00:39:35.010

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: and yes, dangerous intersection. We have sent all of you more information via email, and we implore you to read, review, review it. Thank you. Thank you. Rolf, I'm so sorry. We're gonna get back to you. We'll follow up.

250
00:39:36.140 --> 00:39:44.239
Boardroom: Okay, moving to the, commenters online. First speaker is a phone number ending in 211.

251
00:39:50.840 --> 00:39:52.700
Boardroom: You should be able to unmute.

252
00:39:53.960 --> 00:39:55.249
1510****211: Right. Good evening.

253
00:39:55.920 --> 00:39:58.859
1510****211: I spoke with you before on many occasions.

254
00:39:59.100 --> 00:40:01.330
1510****211: Lived in Berkeley for over 62 years.

255
00:40:01.720 --> 00:40:06.020
1510****211: created one of the largest consumer electronics in the whole Bay Area.

256
00:40:06.690 --> 00:40:10.040
1510****211: We had about 10 competitors.

257
00:40:10.180 --> 00:40:14.149
1510****211: Only our business, EIDS Electronic, is the only one left.

258
00:40:14.900 --> 00:40:22.220
1510****211: And, for many reasons, I wanted to do business with the city, not with the megaland roads who are nothing but a bunch of crocs.

259
00:40:22.670 --> 00:40:28.430
1510****211: So, very quickly, we're actually in the process of retaining another attorney.

260
00:40:28.640 --> 00:40:31.049
1510****211: We're going to raise our demand

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

261
00:40:31.170 --> 00:40:40.089
1510****211: financial losses to $5 million. But the way Jesse Aragin acted, not only with us, the whole genocide of Gaza and everything else.

262
00:40:40.430 --> 00:40:58.030
1510****211: This is a lot of damage. This is a whole people of the city of Berkeley, a lot of damage. Need to fix that. Have a good night, and mayor Ishii, I think I played a big role in bringing in office. Give me a call. Let's have a friendly meeting. We can consider all potential avenues. You're a very dedicated woman.

263
00:40:58.030 --> 00:40:58.430
Boardroom: I'm weird.

264
00:40:58.430 --> 00:41:01.739
1510****211: educated man. I thought at Berkeley, let's get you guys are. Have a good night.

265
00:41:01.740 --> 00:41:03.590
Boardroom: Thanks for your comment.

266
00:41:03.960 --> 00:41:06.569
Boardroom: Okay, next is, Rob.

267
00:41:11.390 --> 00:41:26.850
Rob: Good evening, I'm Rob. I work out of the Workstation West co-working space on Bancroft and 6 that Mr. Bell is the very friendly owner of, and I also experienced the disruption with the traffic lights, first to construction, and then the traffic lights.

268
00:41:26.850 --> 00:41:30.619
Rob: It makes having guests over very difficult. You know, we are lucky to

269
00:41:30.620 --> 00:41:46.980
Rob: being not too far distance from Amtrak or other public transit, but even so, some people, just because of the situations, have to park, and so, similarly, I'd like to echo, working with the city to help give more space for parking for residents who need it, so they can have that option as well.

270
00:41:49.690 --> 00:41:50.700
Boardroom: Thank you.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

271
00:41:50.930 --> 00:41:52.600
Boardroom: Next is…

272
00:41:58.090 --> 00:42:01.040
Boardroom: Bet?

273
00:42:06.530 --> 00:42:08.569
Thet Shein Win: Hi, can you hear me?

274
00:42:08.570 --> 00:42:08.950
Boardroom: Yes.

275
00:42:09.660 --> 00:42:15.560
Thet Shein Win: Great, thank you so much. Good evening, Mayor Ishii, Council Members, and neighbors.

276
00:42:15.560 --> 00:42:31.210
Thet Shein Win: I'm Fett Jane Nguyen, and a homeowner in District 5. I'm also board chair of Berkeley Art Center, and I know you're facing some tough budgeting decisions right now, and I want to start by thanking you for the hard work you do for our city every day.

277
00:42:31.280 --> 00:42:44.060
Thet Shein Win: For nearly 60 years, the Berkeley Arts Center has been a quiet but robust gallery here in Live Oak Park. We're tucked away in that majestic spot, but we're anything but quiet when it comes to our community.

278
00:42:44.260 --> 00:42:49.119
Thet Shein Win: We've spent 6 decades bringing thoughtful, contemporary art to the Bay Area.

279
00:42:49.300 --> 00:42:52.450
Thet Shein Win: We are deeply grateful for the City's support.

280
00:42:52.950 --> 00:42:55.700
Thet Shein Win: But I also want to share where we are today.

281
00:42:55.880 --> 00:43:14.399
Thet Shein Win: Like many organizations, we've gone through a leadership transition. Our new executive director, Gisele Insoaste, has been

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

incredible. She's built bridges with diverse communities, and is helping us build a model that earns its own income. Her goal, to eventually rely less on city funding.

282
00:43:14.400 --> 00:43:17.179
Boardroom: I'm sorry, your time is actually up, but if you.

283
00:43:17.180 --> 00:43:17.484
Thet Shein Win: But…

284
00:43:17.790 --> 00:43:19.300
Boardroom: More information you can.

285
00:43:19.430 --> 00:43:20.430
Boardroom: Thank you.

286
00:43:21.630 --> 00:43:25.399
Boardroom: Okay, next is, makai Freeman.

287
00:43:26.520 --> 00:43:31.860
Boardroom: You should be able to… Unmute.

288
00:43:33.730 --> 00:43:34.450
Michai Freeman CIS She/Her: Yeah.

289
00:43:36.980 --> 00:43:38.300
Michai Freeman CIS She/Her: Good evening.

290
00:43:39.150 --> 00:43:40.930
Michai Freeman CIS She/Her: Yeah, he counts.

291
00:43:41.300 --> 00:43:46.300
Michai Freeman CIS She/Her: memorization, but… Public my game is.

292
00:43:47.170 --> 00:43:48.670
Michai Freeman CIS She/Her: Our female sister.

293
00:43:49.610 --> 00:43:51.020
Michai Freeman CIS She/Her: Change advocate.

294

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:43:52.640 --> 00:43:56.560
Michai Freeman CIS She/Her: as a center for inter… Planted living.

295
00:43:58.440 --> 00:43:59.980
Michai Freeman CIS She/Her: The system changed a lot.

296
00:44:00.910 --> 00:44:02.300
Michai Freeman CIS She/Her: That's just launched.

297
00:44:04.230 --> 00:44:05.680
Michai Freeman CIS She/Her: And on our streets.

298
00:44:06.600 --> 00:44:07.800
Michai Freeman CIS She/Her: campaign.

299
00:44:09.690 --> 00:44:15.960
Michai Freeman CIS She/Her: Getting narratives… an input from… residence on.

300
00:44:16.840 --> 00:44:21.380
Michai Freeman CIS She/Her: The hardship… obstacles.

301
00:44:22.590 --> 00:44:23.880
Michai Freeman CIS She/Her: and pimas.

302
00:44:24.770 --> 00:44:30.770
Michai Freeman CIS She/Her: The parking… practicing our… Sidewalks.

303
00:44:31.630 --> 00:44:33.170
Michai Freeman CIS She/Her: And who's refund.

304
00:44:34.190 --> 00:44:35.570
Michai Freeman CIS She/Her: of mind and death.

305
00:44:37.230 --> 00:44:41.200
Michai Freeman CIS She/Her: Residents that are… a destiny tour.

306
00:44:41.800 --> 00:44:43.240
Michai Freeman CIS She/Her: Our safety.

307

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:44:44.200 --> 00:44:45.830
Michai Freeman CIS She/Her: And to our lives.

308
00:44:47.400 --> 00:44:48.970
Michai Freeman CIS She/Her: I will be requesting.

309
00:44:49.780 --> 00:44:51.390
Michai Freeman CIS She/Her: I'm here for you.

310
00:44:55.370 --> 00:44:57.080
Michai Freeman CIS She/Her: and council members.

311
00:44:57.690 --> 00:44:59.609
Michai Freeman CIS She/Her: As your incentivize.

312
00:45:00.180 --> 00:45:01.530
Michai Freeman CIS She/Her: Objective part.

313
00:45:03.320 --> 00:45:04.620
Michai Freeman CIS She/Her: Bike lanes.

314
00:45:05.770 --> 00:45:11.750
Michai Freeman CIS She/Her: Reduction in… Accessible park… But vans.

315
00:45:13.640 --> 00:45:15.189
Michai Freeman CIS She/Her: This is a V.

316
00:45:16.780 --> 00:45:18.309
Michai Freeman CIS She/Her: made a discriminatory.

317
00:45:19.290 --> 00:45:20.680
Michai Freeman CIS She/Her: discrimination.

318
00:45:21.910 --> 00:45:23.490
Michai Freeman CIS She/Her: And can draw.

319
00:45:24.990 --> 00:45:26.639
Michai Freeman CIS She/Her: Why it's not built.

320
00:45:28.270 --> 00:45:29.850

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Michai Freeman CIS She/Her: To equally navigate.

321
00:45:31.390 --> 00:45:32.850
Michai Freeman CIS She/Her: in the community.

322
00:45:34.620 --> 00:45:36.340
Michai Freeman CIS She/Her: Are you ones, equal?

323
00:45:37.900 --> 00:45:39.429
Michai Freeman CIS She/Her: Practice for all.

324
00:45:40.450 --> 00:45:41.950
Michai Freeman CIS She/Her: Brookly residence?

325
00:45:41.950 --> 00:45:44.030
Boardroom: Thank you, Makai.

326
00:45:44.030 --> 00:45:45.370
Michai Freeman CIS She/Her: raised it for all.

327
00:45:46.140 --> 00:45:47.640
Michai Freeman CIS She/Her: First investments.

328
00:45:47.950 --> 00:45:50.270
Boardroom: Feel free to reach out to us. Thank you.

329
00:45:50.970 --> 00:45:55.150
Boardroom: Okay, and last speaker is Della Luna.

330
00:45:57.690 --> 00:46:08.750
Della Luna (she/her) Huichun: Yes, hi. I was, wanting to speak about the lack of bathrooms at the farmer's market downtown Saturdays. There was a bathroom there, and it was taken away, and it…

331
00:46:09.180 --> 00:46:15.929
Della Luna (she/her) Huichun: Because that's, like, an official city event, it doesn't make sense to be, like, luring people over there when there's no bathroom?

332
00:46:16.610 --> 00:46:21.119

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Della Luna (she/her) Huichun: And I'm, as the constituent, not clear what happened to the bathrooms inside the building.

333
00:46:21.340 --> 00:46:30.830
Della Luna (she/her) Huichun: They seem to be working pretty well. And so it would be nice to have the bathrooms open during the farmer's market, rather than no bathroom. And I know it was a pilot program, but…

334
00:46:31.370 --> 00:46:43.170
Della Luna (she/her) Huichun: it still doesn't solve the issue of, like, what do we do for bathrooms right now? And, like, every Saturday, there needs to be bathrooms at the farmer's market, and even handicap accessible bathrooms at the farmer's market. Thank you.

335
00:46:47.030 --> 00:46:51.200
Boardroom: Thank you, Dalette. Okay, thank you all so much for your comments.

336
00:46:51.310 --> 00:47:09.920
Boardroom: We are moving on to our consent calendar. But before we start the consent calendar, I think that our audit from our auditor really highlighted something that's important. I just want to remind all of you, which I feel like you need no reminding, but that we have a lot of work to do around the budget over the next

337
00:47:11.820 --> 00:47:13.000
Boardroom: two months.

338
00:47:13.170 --> 00:47:28.340
Boardroom: And I just wanted to give you all just a little overview of what's happening, because on May 14th, the City Manager will present his full budget proposal to the Budget and Finance Committee, which will be, which will be followed by a presentation to the full Council on May 19th.

339
00:47:28.520 --> 00:47:44.039
Boardroom: And as has been brought up before, we are facing a structural deficit of $30 million for FY27 and FY828. So understanding this, we do have four budget referrals that have come forward over the past few months.

340
00:47:45.310 --> 00:48:09.060
Boardroom: I'd like to ask that council members get any of their budget referrals for the next two-year budget cycle to the May 19th meeting so that they can be taken into consideration. I think we did this last year, too, where folks just shared what are their, sort of, priorities, so if

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

you could all, and your offices, just so you know, if you can bring that to the May 19th meeting, that would be really helpful in how we're thinking about the budget moving forward.

341
00:48:09.060 --> 00:48:13.360
Boardroom: Keeping in mind that we have no money set aside for any of these extra.

342
00:48:13.370 --> 00:48:19.739
Boardroom: referrals, but, I'm still curious to know what's on everyone's minds and what are their priorities.

343
00:48:20.420 --> 00:48:25.659
Boardroom: Okay, so, do council members have any comments on the consent calendar?

344
00:48:28.150 --> 00:48:31.069
Boardroom: Oh, Councilmember Taplin, I see your hand raised.

345
00:48:31.600 --> 00:48:42.149
Terry Taplin: Thank you very much, and good evening, Madam Mayor and everyone. On item number 10, this is the D13 resolution supporting Luna Dance's May Day Gathering and Bazaar event.

346
00:48:42.170 --> 00:48:55.059
Terry Taplin: I want to just uplift the work of this organization. They are a vanguard arts org in District 2 in West Berkeley. This is going to be an amazing event, and I encourage all to attend, and I thank my colleagues for their support. Thank you.

347
00:48:57.190 --> 00:48:59.850
Boardroom: Thank you very much. Councilmember Bartlett.

348
00:49:01.540 --> 00:49:09.289
Ben Bartlett: Thank you. I'd like to donate, $200 from our discretionary account to the Luna Dance Creativity Festival. Should be a great event. Thank you.

349
00:49:10.810 --> 00:49:13.650
Boardroom: Thank you. Okay, Councilmember Lunapara.

350
00:49:15.440 --> 00:49:21.380

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Thank you. I'd like to donate $200, to item 10, the Luna Dance, and thank you, Councilmember Taplin, for authoring.

351
00:49:23.860 --> 00:49:26.309
Boardroom: Thank you. Councilmember Blackaby.

352
00:49:26.920 --> 00:49:45.290
Boardroom: Yes, thanks, Madam Mayor. Couple things. I just wanted to, on item 3, note, we're making our, our office is making our appointment to the Police Accountability Board, Pat DeTemple. I just want to thank, my colleagues in advance for their support, and thank Pat in advance for his service.

353
00:49:45.290 --> 00:49:58.419
Boardroom: Pat, previously served as, the staff member on the PRC, in the past, so he is well-versed in these issues and a long-time resident of the community, and I'm looking forward to his service.

354
00:49:58.420 --> 00:50:07.980
Boardroom: On the PAB, I also thank Councilmember O'Keefe for, her recommendation, because Pat lives in her district, and he'll be a great addition. So, appreciate his willingness to serve.

355
00:50:08.280 --> 00:50:22.369
Boardroom: Great minds think alike. You'll notice items 7 and 8, the Disaster and Fire Safety Commission, have put forward a couple of, bill recommendations, in the wildfire and insurance space.

356
00:50:22.630 --> 00:50:41.210
Boardroom: Our office also came forward with item 11, which is a resolution supporting a package of 13 bills that are moving through the legislature, this, this spring and summer. And actually, Item 7, is, is one of the bills in that package.

357
00:50:41.240 --> 00:51:05.829
Boardroom: So we submitted a supplemental to, item number 11, which basically rolls in, the letters and some of the content from the Disaster and Fire Safety Commission on Item 7, and makes it, with the support of the chair of that commission, so it kind of enhances what we're doing in, in, item 11. Let me just highlight, again, a little bit more about what this legislative package does, because it is really important

358
00:51:05.830 --> 00:51:17.730

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: important, to what we're doing here in Berkeley in terms of our EMBER, proposal and all the hard work that committee members in District 6 are doing. This package includes more support.

359
00:51:17.730 --> 00:51:19.780
Boardroom: For,

360
00:51:19.780 --> 00:51:30.039
Boardroom: Loan financing for people who are doing home hardening, so more financial support, which we know is really needed, and this would be a state program to make more loan financing available to homeowners.

361
00:51:30.040 --> 00:51:49.579
Boardroom: more support for home hardening, it would expand some existing fire mitigation programs that are already at work across the state, and would reduce the barriers to doing more beneficial fire, kind of pre-burns in areas that need, some, some, some fire, beneficial fire, to reduce the fuel load. So it's a whole kind of,

362
00:51:49.630 --> 00:51:57.949
Boardroom: package of bills that collectively are going to make the state more, fire-safe, and will also help us in Berkeley. So I just wanted to thank

363
00:51:57.950 --> 00:52:13.369
Boardroom: Senators Allen, Becker, and Stern, as well as Assembly members Bennett, Conley, and Rogers for their authorship. And again, urge my colleagues to join me in supporting this package, which is, really timely and so important.

364
00:52:13.370 --> 00:52:22.479
Boardroom: The other item from the Disaster and Fire Safety Commission, which is item 8, is a bill by Senator Perez that will,

365
00:52:22.490 --> 00:52:42.439
Boardroom: basically creates more of a linkage between homeowners that do home hardening and guarantees them ongoing insurance coverage. This also is really a missing link in a lot of the resiliency work that's happening. Homeowners need more assurance that if they're gonna make the investments.

366
00:52:42.440 --> 00:52:54.700
Boardroom: that they need to, to comply with state rules, and also what we're doing at Ember, to do the home hardening and do the defensible

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

space, that they should get insurance. And this bill helps to close that gap.

367
00:52:54.880 --> 00:53:14.859
Boardroom: I'll note, I think there's a… there will be, I hope, some additional enhancement to this bill, because I think, like what we're seeing with Ember, it's one thing if you're an individual homeowner, and you do the work, and no one else on your block does. And insurance companies, I think, have a difficult time, guaranteeing a homeowner who's one person out of 100 that does the work.

368
00:53:14.860 --> 00:53:20.460
Boardroom: So I think… I think enhancements to this bill will be necessary. I'm hoping that it happens in the legislative process.

369
00:53:20.460 --> 00:53:42.260
Boardroom: that if it's a homeowner in concert with a whole neighborhood, and that there's widespread adoption, like what we're trying to do in Ember, that should make the whole neighborhood more insurable. So, but anyway, this bill is a step in the right direction. I think with some adjustments to recognize the community's role in doing this, it'll be even better, but again, proud to support this, and I appreciate the Disaster and Fire Safety Commission bringing it.

370
00:53:42.260 --> 00:53:51.119
Boardroom: Lastly, I'd also like to give $250 from our office budget to the Luna Dance, item from Councilmember Taplin, thank you for bringing it.

371
00:53:51.120 --> 00:54:15.090
Boardroom: And so let me just formally say, then, I… what I would ask, since we're moving part of Item 7 into item 11, I'd ask that we formally take no action on item 7, because item 11 basically will… takes the action from 7 and just… and broadens it to all the bills. So the ask is, no action on 7, item 11 now incorporates that. The Disaster and Fire Safety Commission had also made that same recommendation.

372
00:54:15.350 --> 00:54:17.289
Boardroom: That's it. Thank you.

373
00:54:18.450 --> 00:54:21.720
Boardroom: Is there any opposition to that? I think that's fine.

374
00:54:22.100 --> 00:54:28.559

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Because it… Okay, thank you, yeah, that makes sense. Okay, Vice Mayor Treyko.

375
00:54:29.830 --> 00:54:35.440
Boardroom: Thank you so much. I wish to abstain on item 1.

376
00:54:35.940 --> 00:54:39.739
Boardroom: I, would like to thank the…

377
00:54:40.720 --> 00:54:55.779
Boardroom: Disaster and Fire Safety Commission for their work, as well as Councilmember Blackaby, and I… I would… I'm excited to support items 8 and 11.

378
00:54:56.130 --> 00:55:15.499
Boardroom: And also mentioned that last week, also with the co-sponsorship of Councilmember Blackaby and other colleagues, and this was a unanimous vote, we took a support position on SB1301 by Senator Allen, reforming the insurance non-renewal process, and

379
00:55:15.500 --> 00:55:21.189
Boardroom: Letters have been sent to applicable committee chairs,

380
00:55:21.320 --> 00:55:31.140
Boardroom: on that bill. Lastly, I wish to contribute $150 from my G13 account towards

381
00:55:31.260 --> 00:55:37.050
Boardroom: Item 10, and thank Councilmember Taplin for his work on this. Thank you.

382
00:55:37.870 --> 00:55:40.439
Boardroom: Thank you very much. Councilmember Humbert.

383
00:55:41.380 --> 00:55:58.289
Boardroom: Thank you, Madam Mayor, and I would like to donate, $200, from, the District 8 discretionary account to item number 10, the Luna Dance, creativity item. Thank you, Councilmember Taplin, for bringing this forward.

384
00:55:58.640 --> 00:56:05.100
Boardroom: And on 11, I want to really extend my thanks to,

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

385
00:56:05.320 --> 00:56:14.680
Boardroom: Councilmember Blackaby, the author of 11, for adding me as a co-sponsor. This is really critical stuff, and this is a really important letter. Thank you.

386
00:56:15.330 --> 00:56:17.679
Boardroom: Thank you very much. Councilmember Kisarwani.

387
00:56:18.920 --> 00:56:35.340
Boardroom: Thank you very much. I would like to be recorded as donating $100 to the, Luna Dance item number 10, and I want to thank Councilmember Blackaby for the, item 11, supporting the Megafire Prevention Package. Thank you very much.

388
00:56:35.660 --> 00:56:37.459
Boardroom: Thank you, Councilmember O'Keefe.

389
00:56:40.500 --> 00:56:47.359
Boardroom: Thank you. I would like to be recorded as donating $250 from my office account to item 10.

390
00:56:47.690 --> 00:57:01.869
Boardroom: I, regarding item 11, I really want to thank Councilmember Blackaby for his leadership, in general on wildfire issues, both locally and also working with the state, as this is part of, and thank you for letting me co-sponsor.

391
00:57:02.110 --> 00:57:17.450
Boardroom: And then lastly, yeah, Pat DeTemple. I just… I'm really excited. Congratulations, Pat, if you're listening. I've known Pat for almost 20 years, and I actually, introduced him, and I'm just so happy. I think he's extremely well qualified to serve on the PAB.

392
00:57:17.450 --> 00:57:42.299
Boardroom: And he really is… he's one of the most civic-minded people I think I've ever met, so I'm really… I think he'll be a great addition. Those are my comments. Thank you very much. I'm also very excited that we have another appointee, so congratulations, Pat, and thank you, Councilmember Blackbee. I know that many of us are waiting for, either interviews or, background checks, but that we are moving those forward, so just so folks know, we are working very hard to get our

393
00:57:42.300 --> 00:57:52.240

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: have appointees on as soon as possible. And I'd also like to add $250 for item number 10 for the Luna Dance Creativity. So, thank you very much!

394
00:57:52.310 --> 00:57:57.980
Boardroom: Alright, is there any public comment on it, consent items or information items only?

395
00:58:00.570 --> 00:58:02.000
Boardroom: Anybody online?

396
00:58:03.090 --> 00:58:05.140
Boardroom: Okay, very good.

397
00:58:05.570 --> 00:58:06.930
Boardroom: Is there a motion?

398
00:58:07.260 --> 00:58:11.719
Boardroom: I move we adopt the consent calendar as amended. Second.

399
00:58:12.480 --> 00:58:14.450
Boardroom: Okay, can we take the roll, please, Clerk?

400
00:58:15.120 --> 00:58:21.189
Boardroom: Okay, to adopt a consent calendar, Councilmember Kesarwani, Yes. Taplin?

401
00:58:21.190 --> 00:58:21.840
Terry Taplin: Alright.

402
00:58:22.290 --> 00:58:23.250
Boardroom: Bartlett.

403
00:58:24.750 --> 00:58:25.510
Ben Bartlett: Yes.

404
00:58:26.120 --> 00:58:34.579
Boardroom: Drago? Aye. O'Keefe? Yes. Blackaby? Yes. Lunapara? Yes. Humbert? Yes. And Mayor Ishii? Yes.

405
00:58:34.580 --> 00:58:51.600

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Okay, motion carries. Alright, consent calendar is approved. Thank you all so much. We will move on to our action calendar, for public hearings. We've got item number 12, submission of the program year 2026 Annual Action Plan Containing Allocations of Federal Funds.

406
00:58:51.990 --> 00:59:06.100
Boardroom: So I will send it over to the City Manager, so if you'd like to introduce… yeah. Thank you. Our Housing Community Services Manager, Margo Ernst, is going to… I think Margo's going to lead this presentation. You can introduce…

407
00:59:06.710 --> 00:59:08.609
Boardroom: Thank you.

408
00:59:20.860 --> 00:59:21.710
Boardroom: There we go.

409
00:59:22.230 --> 00:59:31.780
Boardroom: Good evening, Mayor Ishii and members of the Council. Tonight, Health, Housing, and Community Services staff are here to present the draft annual action plan.

410
00:59:32.030 --> 00:59:40.560
Boardroom: which is submitted to the U.S. Department of Housing and Urban Development for the City's annual allocation of Community Development Block Grant.

411
00:59:40.670 --> 00:59:46.300
Boardroom: Emergency Solutions Grant, and the Home Investment Partnership Program funds.

412
00:59:47.260 --> 00:59:55.960
Boardroom: Kat LaRue from the Housing and Community Services Division will provide a brief presentation to accompany the staff report and the annual action plan.

413
00:59:56.530 --> 01:00:00.550
Boardroom: And we are both available to answer any questions you may have after.

414
01:00:01.130 --> 01:00:02.839
Boardroom: And I'll pass it over to Kat.

415

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

01:00:03.270 --> 01:00:03.960
Boardroom: Just…

416
01:00:09.950 --> 01:00:12.590
Boardroom: You weren't expecting us to be done so quickly.

417
01:00:14.220 --> 01:00:19.459
Boardroom: Feel free to move your mic closer, too. I can already tell it will be tough to hear you.

418
01:01:15.720 --> 01:01:17.870
Boardroom: Okay, can you hear me okay?

419
01:01:21.270 --> 01:01:40.659
Boardroom: Thank you, Margo, for that introduction. Good evening, Mayor Ishii and members of the City Council. In my role, I oversee and monitor federal and state grant compliance for the Housing and Community Services Division. We are here tonight to present the program year 2026, or Fiscal Year 2027, draft annual action plan.

420
01:01:40.860 --> 01:01:44.409
Boardroom: for the U.S. Department of Housing and Urban Development, or HUD.

421
01:01:44.510 --> 01:01:56.490
Boardroom: This presentation will include background of HUD requirements, the annual action plan process, including public participation, and provide a brief overview of the planned projects and activities for the next year.

422
01:01:56.670 --> 01:02:03.450
Boardroom: The full draft annual action plan is available in the Council meeting agenda packet and on the City's website.

423
01:02:05.110 --> 01:02:20.940
Boardroom: The City of Berkeley is an entitlement jurisdiction, meaning that the City receives a formula allocation of Community Development Block Grant, CDBG, Emergency Solutions Grant, ESG, and Home Investment Partnerships Program, or HOME, funds from HUD each year.

424
01:02:22.340 --> 01:02:30.449
Boardroom: As a requirement of receiving these funds, the City must submit several reports and include public participation throughout every process.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

425
01:02:30.640 --> 01:02:47.070
Boardroom: Every five years, we develop and submit a consolidated plan, laying out the projects, activities, and outcome goals for those funds. Each of the five years, we submit an annual action plan on how we intend to meet the goals for that one year within the five-year period.

426
01:02:49.450 --> 01:03:01.279
Boardroom: The annual action plan is… this annual action plan is the second year of the current consolidated plan and covers the period of July 1, 2026 through June 30th, 2027.

427
01:03:01.430 --> 01:03:07.830
Boardroom: The annual action plan follows the goals, projects, and activities that were identified in the Consolidated Plan.

428
01:03:08.110 --> 01:03:17.470
Boardroom: This plan was presented to the Housing Advisory Commission, or the HACC, for comments and feedback at the March 5th meeting, where they voted to recommend that Council approve the plan.

429
01:03:17.780 --> 01:03:28.779
Boardroom: The official public comment period opened on March 27th, and will close this Friday, May 1st, at 11.59 p.m. And the final report is due to HUD around mid-May.

430
01:03:30.620 --> 01:03:46.440
Boardroom: For the upcoming fiscal year, the City of Berkeley will receive approximately $3.4 million across the three funding streams, with CDBG making up the largest amount at about $2.6 million. HUD did release the final allocation amounts in early April.

431
01:03:49.160 --> 01:03:57.829
Boardroom: These funds, received from HUD are allocated in three main ways. The first is to community agencies through a request for proposal process.

432
01:03:57.830 --> 01:04:12.080
Boardroom: that is conducted every four years. This RFP process also includes state, local, and general fund dollars, and authorizes the city to proceed with key federal projects utilizing these HUD funds, such as the Public Facility Improvement Program.

433
01:04:12.380 --> 01:04:13.340

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: The public…

434
01:04:13.360 --> 01:04:32.880
Boardroom: And several commissions are involved through reviewing proposals and recommending awards to Council. I want to pause here and highlight that the majority of the funds, being proposed in this annual action plan tonight have been allocated through this RFP process, which was adopted in June of 2024 for the cycle of FY25 through 28.

435
01:04:33.570 --> 01:04:53.979
Boardroom: Secondly, funds are expended through program delivery costs, such as staff, community agencies, developers, or consultants, processing loans, conducting environmental reviews, inspections, or other program-related activities. And finally, for administration, which is largely made up of personnel time, but also includes some operating and other overhead costs.

436
01:04:55.810 --> 01:05:12.559
Boardroom: And now, we will review the planned projects and activities. So the 5-year consolidated plan sets goals that all of our annual projects fit under. These include increasing affordable housing supply and quality, improving public facilities, and improve…

437
01:05:12.890 --> 01:05:19.020
Boardroom: Providing public services, and providing homeless prevention, shelter, and rapid rehousing.

438
01:05:19.830 --> 01:05:38.360
Boardroom: Specifically looking at CDBG, these projects include rehabilitation of multifamily residences, single-family homes, and public facilities that support the preservation of affordable housing, improve the health and safety, ADA access, and or energy efficiency of homes and public buildings.

439
01:05:38.700 --> 01:05:55.169
Boardroom: On this slide, I'd like to highlight that the Public Facility Improvement Program is projected to have a significant increase in funding due to expected program income, with the projected total to be about $1.3 million, and this will help fill a critical need for rehabilitation of public facilities.

440
01:05:55.630 --> 01:06:03.670
Boardroom: Other projects under CDBG include public services, which are, addressing housing navigation and fair housing services.

441

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

01:06:05.150 --> 01:06:08.980
Boardroom: ESG will be used to provide financial assistance.

442
01:06:09.240 --> 01:06:15.699
Boardroom: Housing relocation and stabilization services to rapidly rehouse and support through emergency shelter.

443
01:06:18.010 --> 01:06:33.569
Boardroom: The home funds will be used for housing trust fund and affordable housing development, where city staff rehabilitate, excuse me, where city staff support rehabilitation of multifamily housing and work through all the requirements of developing affordable housing in the city.

444
01:06:34.790 --> 01:06:52.989
Boardroom: In closing, we ask that Council consider the following recommended action, which is to adopt a resolution authorizing the City Manager to execute any resultant agreements and amendments for agencies receiving funding under the CDBG ESG or HOME program in accordance with the approved proposal.

445
01:06:53.120 --> 01:07:05.969
Boardroom: Adjust reporting dates, due dates for community agency agreements, allocate the proposed funding plan described in the annual action plan, and finalize and submit the program year 2026 Annual Action Plan to HUD.

446
01:07:06.530 --> 01:07:09.869
Boardroom: Thank you very much, and we'd be happy to answer any questions.

447
01:07:10.320 --> 01:07:21.720
Boardroom: Thank you so much. I really appreciate you presenting all of this and going over all of the, the timeline. I think it's really helpful, especially. Are there any questions from anyone on Council here?

448
01:07:23.830 --> 01:07:24.990
Boardroom: No questions.

449
01:07:25.190 --> 01:07:39.790
Boardroom: Okay, very good. Thank you so much. Is there any public comment on this item? We are on item number 12, which is the submission of the program year 2026 Annual Action Plan containing allocations of federal funds.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

450
01:07:43.920 --> 01:07:46.339
Boardroom: I think Carol is moving towards the mic.

451
01:07:51.360 --> 01:08:09.849
Boardroom: Okay, go ahead, Carol. Actually, I don't know that this is, the appropriate time to mention this, but I just want to say that, had we known that the emergency shelter would be in jeopardy this year, would be planned to be eliminated, I think we would have…

452
01:08:09.950 --> 01:08:23.019
Boardroom: given that high priority, when we made our recommendations on the Homeless Services Panel of Experts, certainly shelters are the highest of priority to keep people safe, to keep people inside.

453
01:08:23.189 --> 01:08:30.529
Boardroom: When the conditions are bad. It was in Emeryville, in the past year.

454
01:08:30.819 --> 01:08:40.139
Boardroom: But still, it was always full. Carol, are you connecting it to this item? Okay, go ahead. It was always full. And there were, 27…

455
01:08:40.640 --> 01:08:57.669
Boardroom: places there, and they were always full. And so I hope that somehow we can identify a source of funding for it. As I said, had we known during our community agency allocation recommendations that it would be in jeopardy, I… we would have addressed it. Thank you.

456
01:08:58.760 --> 01:09:01.550
Boardroom: Thank you. Any other public comment online?

457
01:09:03.939 --> 01:09:06.310
Boardroom: There's one hand raised online.

458
01:09:07.010 --> 01:09:09.260
Boardroom: That's, Makai Freeman.

459
01:09:15.040 --> 01:09:15.900
Boardroom: There we go.

460
01:09:16.300 --> 01:09:17.879
Boardroom: Should be able to unmute.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

461
01:09:20.660 --> 01:09:22.119
Michai Freeman CIS She/Her: Yes, it's in shape.

462
01:09:23.830 --> 01:09:25.350
Michai Freeman CIS She/Her: I think it's reached HCA.

463
01:09:26.540 --> 01:09:28.129
Michai Freeman CIS She/Her: Yeah, you're eligible.

464
01:09:29.109 --> 01:09:31.080
Michai Freeman CIS She/Her: Be sharing our complaint.

465
01:09:31.800 --> 01:09:32.620
Michai Freeman CIS She/Her: Alright.

466
01:09:34.620 --> 01:09:35.990
Michai Freeman CIS She/Her: He's 4.

467
01:09:37.729 --> 01:09:39.209
Michai Freeman CIS She/Her: DC hurdle.

468
01:09:39.870 --> 01:09:44.589
Michai Freeman CIS She/Her: Housing, and… Something's for it.

469
01:09:45.430 --> 01:09:46.930
Michai Freeman CIS She/Her: Housing preservation.

470
01:09:48.720 --> 01:09:50.290
Michai Freeman CIS She/Her: That's funny.

471
01:09:51.819 --> 01:09:53.430
Michai Freeman CIS She/Her: Thank you.

472
01:09:58.840 --> 01:09:59.820
Boardroom: Thank you.

473
01:10:00.270 --> 01:10:01.430
Boardroom: Thanks, Makai.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

474
01:10:02.420 --> 01:10:04.510
Boardroom: That was the only raised hand.

475
01:10:04.620 --> 01:10:10.239
Boardroom: Okay, thank you very much. Any comments? I see that, Vice Mayor Treykup has his light on.

476
01:10:11.430 --> 01:10:26.340
Boardroom: I just wanted to appreciate the HHCS team for your hard work on this. I remember reviewing these when I was on the Housing Advisory Commission a million years ago.

477
01:10:26.490 --> 01:10:32.429
Boardroom: I, I know that since then, you know, especially with this current

478
01:10:32.540 --> 01:10:42.769
Boardroom: federal administration. It has gotten more challenging to, find financing, and yet, nevertheless.

479
01:10:42.940 --> 01:10:55.940
Boardroom: We persist. You persist. And, I… I think this plan is a, laudable statement of our city's values.

480
01:10:56.100 --> 01:11:00.200
Boardroom: Around, ensuring that this is.

481
01:11:00.300 --> 01:11:04.509
Boardroom: Or can be a place that we can all call home, and…

482
01:11:04.690 --> 01:11:08.209
Boardroom: I'm proud to support this, and will, if…

483
01:11:08.510 --> 01:11:15.129
Boardroom: If or when appropriate, would be happy to make a motion for this, just approve the staff recommendation.

484
01:11:17.080 --> 01:11:18.999
Boardroom: Thank you. Councilmember Humbert?

485
01:11:19.380 --> 01:11:29.019

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Yes, thank you, Madam Mayor. And, I would echo, the comments of Councilmember Tragube. Thank you, to the HHCS team for.

486
01:11:29.440 --> 01:11:40.169
Boardroom: all your work on the presentation, and also for putting together the spending plan. It's really harrowing and unfortunate that we may not be able to rely on these funds in future years.

487
01:11:40.630 --> 01:11:46.729
Boardroom: But it's important we make the best of it while we can. So thank you for all of your efforts on this. Thanks a lot.

488
01:11:47.330 --> 01:11:49.439
Boardroom: Thank you. Any other comments?

489
01:11:51.320 --> 01:11:54.100
Boardroom: Thank you all so much for your work, I appreciate it.

490
01:11:54.360 --> 01:12:02.039
Boardroom: And I believe we actually do need to vote on it. I'll second the… There was a motion that was made. What was the public hearing. Sorry, yes.

491
01:12:02.190 --> 01:12:05.800
Boardroom: Let's make a motion to close the public hearing, please. So moved. Second.

492
01:12:06.120 --> 01:12:10.630
Boardroom: Can we take the roll on that? Okay, to close the public hearing, Councilmember…

493
01:12:11.010 --> 01:12:14.329
Boardroom: Councillor Wani is currently absent. Taplin?

494
01:12:14.330 --> 01:12:14.890
Terry Taplin: Right.

495
01:12:15.640 --> 01:12:20.860
Boardroom: Yes, Councilmember Kisarwani, to close the public hearing? Yes. Okay, Taplan?

496
01:12:22.610 --> 01:12:23.240

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Terry Taplin: Bye.

497
01:12:23.940 --> 01:12:24.820
Boardroom: Bartlett.

498
01:12:25.130 --> 01:12:26.160
Ben Bartlett: Yes.

499
01:12:26.160 --> 01:12:28.290
Boardroom: Drago? Aye. O'Keefe?

500
01:12:28.910 --> 01:12:31.220
Boardroom: Yes. Blackaby? Yes.

501
01:12:31.630 --> 01:12:37.050
Boardroom: Munapara? Yes. Thank you. Humbert? Yes. And Mayor Ishii? Yes.

502
01:12:37.370 --> 01:12:38.250
Boardroom: Okay.

503
01:12:38.500 --> 01:12:43.770
Boardroom: Thank you. So now we need to actually… we had a motion that was made

504
01:12:44.240 --> 01:13:00.799
Boardroom: But… and there was a second, I think. A second, Councilmember Traeger's motion. Okay, thank you. And can we take the roll on that, please? Okay, to approve the staff recommendation for the annual action plan, Councilmember Kesarwani? Yes. Taplin?

505
01:13:01.980 --> 01:13:02.610
Terry Taplin: Bye.

506
01:13:03.320 --> 01:13:04.240
Boardroom: Bartlett.

507
01:13:05.180 --> 01:13:05.810
Ben Bartlett: Yes.

508
01:13:06.310 --> 01:13:25.760

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Drago? Aye. O'Keefe? Yes. Blackaby? Yes. Lunapara? Yes. Humber? Yes. And Mayor Ishii? Yes. Okay, motion carries. Okay, thank you very much, appreciate it. Okay, moving on to item number 13, California Municipal Finance Authority Bond Financing for Ephesian Legacy Corps Departments Project.

509
01:13:27.970 --> 01:13:34.689
Boardroom: We don't have a presentation for this one, Madam Mayor, but if you have questions, HCS Manager Ernst is here.

510
01:13:36.640 --> 01:13:39.910
Boardroom: Okay, very good. Are there any questions from Council?

511
01:13:42.080 --> 01:13:45.669
Boardroom: Oh, this is… Yeah, we're on item number 13.

512
01:13:49.290 --> 01:13:54.259
Boardroom: Nope. No questions. Okay. Is there any public comment on this item?

513
01:13:58.170 --> 01:14:13.439
Boardroom: Anybody online for public comment on item number 13? This is item number 13, California Municipal Finance Authority Bond Financing for Ephesian Legacy Court Apartments project. Now is the time to raise your hand on Zoom.

514
01:14:13.800 --> 01:14:16.400
Boardroom: There aren't no raised hands.

515
01:14:19.260 --> 01:14:20.619
Boardroom: Those speakers online.

516
01:14:22.470 --> 01:14:24.629
Boardroom: Okay, thank you very much.

517
01:14:25.110 --> 01:14:29.030
Boardroom: Any comments on this item? Yes.

518
01:14:29.210 --> 01:14:32.669
Boardroom: Councilmember Humbert, I know your clicker's not working. Go ahead.

519

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

01:14:36.920 --> 01:14:38.760
Boardroom: I'm sorry.

520
01:14:38.920 --> 01:14:55.109
Boardroom: I'm sorry. I simply want to thank the HHCS team and the City Manager for the work on the item. I'm excited to see the project get underway, and appreciate everything city staff have done to help move it forward.

521
01:14:55.860 --> 01:14:56.580
Boardroom: That's it.

522
01:14:58.200 --> 01:15:14.950
Boardroom: Yes. Oh, go ahead. I do have more comments. I also wanted to point out, this is the sort of project that is made possible because developers pay in-lieu fees into our housing trust fund, which, if I understand correctly, provided pre-development funds for this project.

523
01:15:15.000 --> 01:15:24.410
Boardroom: So if some people get their way and we see in-lieu fees dry up, this is the kind of permanently affordable housing project that may no longer be feasible. Thank you.

524
01:15:25.460 --> 01:15:28.509
Boardroom: Thank you, Councilmember Bartlett, your district.

525
01:15:29.470 --> 01:15:41.180
Ben Bartlett: Yes, I'm gonna say this is a really, really special moment. This was, I think the second in our, in our line of church housing, opportunity sites that we've developed here in Berkeley.

526
01:15:41.180 --> 01:15:53.439
Ben Bartlett: And, through the years, this one through many iterations, and the original developer, who was a wonderful man, he passed away, before seeing his crea… and this is his creation, too, for seeing it come to fruition, and

527
01:15:53.560 --> 01:16:00.020
Ben Bartlett: I'm just really happy that it's here, and I wish he was here to see it. And my colleague.

528
01:16:00.410 --> 01:16:17.020
Ben Bartlett: Mr. Humbert brings a great point, and this is really important as we talk about the debate, around on-site or in-lieu fees,

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

etc. It is complicated because the in-lieu fees do enable these hard-to-finance, housing projects involving

529
01:16:17.020 --> 01:16:29.649
Ben Bartlett: you know, many, many people. So, something to bear in mind as we go forward debating in this topic. And again, just thank you again to the staff for delivering this project. It's been many years, and it really feels wonderful.

530
01:16:31.650 --> 01:16:41.050
Boardroom: Thank you so much, Councilmember. I just also want to add my thanks and my excitement for this project. This is also in my neighborhood, and, I'm just…

531
01:16:41.140 --> 01:16:56.180
Boardroom: very excited for this to become something more for a long time. It's been a dilapidated building, and it's very exciting to see it become something that is going to be really positive for our neighborhood. So, thank you so much, and really looking forward to the groundbreaking. So, thank you.

532
01:16:57.210 --> 01:17:11.380
Boardroom: Okay, alright, so now we have finished with that, can we… yes, it might require adoption of the resolution. Yeah, I was gonna say, I think I need to also have us first close the public hearing.

533
01:17:11.520 --> 01:17:14.260
Boardroom: So, is there a motion to close the public hearing? So moved.

534
01:17:15.750 --> 01:17:21.419
Boardroom: Second. Okay, can we take the roll on that, please? Okay, to close the public hearing, Councilmember Kesarwani.

535
01:17:21.670 --> 01:17:23.600
Boardroom: Yes. Taplin? Aye.

536
01:17:24.070 --> 01:17:25.080
Boardroom: Bartlett?

537
01:17:25.080 --> 01:17:25.820
Ben Bartlett: Yes.

538
01:17:26.310 --> 01:17:37.250

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Trega? Aye. O'Keefe? Yes. Blackaby? Yes. Unapara? Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay.

539
01:17:37.810 --> 01:17:43.489
Boardroom: Very good. We have closed the public hearing, and now I'll see if there's any motions to move forward the item itself.

540
01:17:46.060 --> 01:17:47.080
Boardroom: So moved.

541
01:17:47.700 --> 01:17:48.750
Boardroom: Second.

542
01:17:48.920 --> 01:17:52.730
Boardroom: Can we take the roll on that, please? Okay, to approve the,

543
01:17:53.870 --> 01:18:00.670
Boardroom: the, Municipal Financing Authority Bond Financing. Councilmember Kastarwani? Yes.

544
01:18:00.850 --> 01:18:01.890
Boardroom: Taplin?

545
01:18:02.970 --> 01:18:03.940
Boardroom: Bartlett.

546
01:18:03.940 --> 01:18:04.690
Ben Bartlett: Yes.

547
01:18:05.230 --> 01:18:10.799
Boardroom: Trega? Aye. O'Keefe? Yes. Blackaby? Yes. Lunapara? Yes.

548
01:18:11.150 --> 01:18:13.860
Boardroom: Humber? Yes. And Mary Ishii? Yes.

549
01:18:13.970 --> 01:18:30.809
Boardroom: Okay, motion carries. Thank you very much. Sorry, I know we have to close the public hearing and then vote on the actual item. Alright, so moving on to item number 14, amendments to Berkeley Municipal Code, Title 23, zoning for consistency with State Law and Technical Edits. I will… oh!

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

550
01:18:32.230 --> 01:18:33.320
Boardroom: Hello!

551
01:18:33.910 --> 01:18:35.959
Boardroom: I will pass it over.

552
01:18:36.320 --> 01:18:38.669
Boardroom: To our Director of Planning. Thank you.

553
01:18:47.400 --> 01:18:52.319
Boardroom: Good evening. Thank you, Mayor. Good evening, Council Members. I'm Jordan Klein, Director of Planning Development.

554
01:18:52.840 --> 01:19:01.890
Boardroom: We have another of our periodic updates to the zoning ordinance, that, as the Mayor mentioned, includes technical edits.

555
01:19:02.020 --> 01:19:06.710
Boardroom: No substantive policy changes, consistency with state law. Presenting for staff.

556
01:19:06.820 --> 01:19:12.639
Boardroom: is Justin Hortner, and also at the staff table with us is Ann Hirsch, Land Use Planning Manager. Take it away, Justin.

557
01:19:13.120 --> 01:19:29.559
Boardroom: Thank you, good evening, Mary Ishii, members of the City Council, Justin Horner, Planning Department staff. Tonight, we ask that you review, conduct a public hearing, and improve a package of amendments to the Berkeley Municipal Code to reflect state law changes, and to correct technical inaccuracies.

558
01:19:31.220 --> 01:19:47.560
Boardroom: The ordinance amendments in your packet include 26 total sections, 15 are simple copy edits, and include correction to terms, some clarifying language, corrections of inaccurate references, and an instance of a typo.

559
01:19:49.120 --> 01:19:59.280
Boardroom: Of the 11 remaining changes, 4 are updates to the development standards to accurately reflect the City Council's action on middle housing from July of last year.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

560
01:19:59.370 --> 01:20:12.910
Boardroom: One removes additional permit requirements for middle housing projects in the MUR district that were intended to be approved ministerially. Two are changes to JADU regulations pursuant to new state laws.

561
01:20:13.120 --> 01:20:17.289
Boardroom: One is a clarification on state density bonus requirements.

562
01:20:17.410 --> 01:20:24.969
Boardroom: And the last is the inclusion of a definition to the glossary section that was not ported over from the old Berkeley Municipal Code.

563
01:20:25.640 --> 01:20:33.900
Boardroom: That concludes my presentation, and I am available for any questions. Thank you so much for that very efficient presentation. Are there any questions?

564
01:20:35.800 --> 01:20:46.730
Boardroom: Okay, any public comment on this item? We are on item number 14, that is the amendments to Berkeley Municipal Code, Title 23, for consistency with state law and technical edits.

565
01:20:47.740 --> 01:20:53.860
Boardroom: Anybody online? There's, one hand raised online, Kelly Hammergren.

566
01:20:58.190 --> 01:21:00.169
kelly hammargren: Hello, can you hear me okay?

567
01:21:00.490 --> 01:21:01.340
Boardroom: Yes.

568
01:21:01.470 --> 01:21:02.210
kelly hammargren: Okay.

569
01:21:02.330 --> 01:21:09.530
kelly hammargren: So, in this list under ordinance Sections Number 20, there's…

570
01:21:09.980 --> 01:21:14.969

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

kelly hammargren: Case law, city cannot require documentation for waivers.

571
01:21:15.240 --> 01:21:22.660
kelly hammargren: And you have ES-R, which is Environmental Safety dash residential.

572
01:21:22.840 --> 01:21:31.410
kelly hammargren: And that's Panoramic Hill, which is a, very high fire hazard safety area.

573
01:21:31.610 --> 01:21:35.009
kelly hammargren: And… and I thought that,

574
01:21:35.320 --> 01:21:41.720
kelly hammargren: This could not be applied to the very high safety

575
01:21:41.970 --> 01:21:52.440
kelly hammargren: the fire… the very high fire zones, and so that is… that's my question, to look at that, and maybe you can ask, since I don't get to ask directly.

576
01:21:52.600 --> 01:22:01.170
kelly hammargren: an explanation of why we're including environmental safety, residential, and Panoramic Hill

577
01:22:02.310 --> 01:22:07.270
kelly hammargren: After hearing people talk about panoramic Hill, my identity.

578
01:22:07.270 --> 01:22:10.130
Boardroom: Thanks, Kelly, I see them… I see them looking it up.

579
01:22:10.630 --> 01:22:13.270
Boardroom: Any other public comment online?

580
01:22:13.670 --> 01:22:16.299
Boardroom: No, no more hands raised. Okay, I…

581
01:22:17.800 --> 01:22:20.149
Boardroom: And, go ahead, Vice Mayor Treyko.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

582
01:22:21.050 --> 01:22:27.769
Boardroom: Comment, do you have a comment? Yeah, through the… through the chair, if I may ask that question.

583
01:22:28.280 --> 01:22:30.190
Boardroom: If you could just speak to…

584
01:22:30.780 --> 01:22:36.040
Boardroom: if ESR was contemplated. Do you mean Director Klein? Director Klein. Okay.

585
01:22:36.640 --> 01:22:39.839
Boardroom: I was like, what chair? There are no changes to the,

586
01:22:42.420 --> 01:22:45.790
Boardroom: Thank you, Vice Mayor. There are no changes to that section of the zoning ordinance.

587
01:22:47.420 --> 01:22:48.090
Boardroom: Okay.

588
01:22:48.320 --> 01:22:51.099
Boardroom: Thank you. Alright, any other comments on this item?

589
01:22:52.280 --> 01:23:06.130
Boardroom: I had one quick one, real quick. On the, the city cannot require documentation for waiver requests. I know that's kind of come up in recent appeals. Could you just talk… so that's, responding to some state law changes. Could you just give us a little bit of…

590
01:23:06.350 --> 01:23:08.720
Boardroom: Color on that, if you wouldn't mind.

591
01:23:11.350 --> 01:23:25.930
Boardroom: Yeah, so following that, discussion at the City Council on a recent, ZAB appeal, we reviewed the local ordinance sections,

592
01:23:26.030 --> 01:23:37.930
Boardroom: regarding density bonus projects, and we found some specific language that we feel is inconsistent with government code and case law, and so that's the proposed correction. Got it.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

593
01:23:38.350 --> 01:23:39.580
Boardroom: Okay, thank you.

594
01:23:40.460 --> 01:23:42.200
Boardroom: Thank you. Any other comments?

595
01:23:42.320 --> 01:23:44.500
Boardroom: Before we close the public hearing…

596
01:23:44.600 --> 01:23:46.729
Boardroom: Okay, is there a motion to close the public hearing?

597
01:23:47.020 --> 01:23:56.169
Boardroom: So moved. Second. Can we take the roll on that, please, Clerk? Okay. Councilmember Kastarwani? Yes. Kaplan?

598
01:23:56.170 --> 01:23:56.850
Terry Taplin: Aye.

599
01:23:57.380 --> 01:23:58.290
Boardroom: Bartlett?

600
01:23:58.420 --> 01:23:59.210
Ben Bartlett: Yes.

601
01:23:59.690 --> 01:24:05.799
Boardroom: Trega? Aye. O'Keefe? Yes. Blackaby? Yes. Lunapara? Yes. Humbert?

602
01:24:06.060 --> 01:24:11.650
Boardroom: Yes. And Mayor Ishii? Yes. Okay, public hearing's closed. Okay.

603
01:24:11.890 --> 01:24:15.589
Boardroom: And, does anyone want to make the motion here?

604
01:24:16.570 --> 01:24:17.480
Boardroom: Summit.

605
01:24:17.730 --> 01:24:18.680

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Second.

606
01:24:20.580 --> 01:24:28.849
Boardroom: Can we take the roll, please? Okay, on the motion to adopt the amendments to Title 23 of the Berkeley Municipal Code.

607
01:24:28.970 --> 01:24:31.510
Boardroom: Councilmember Kesarwani? Yes.

608
01:24:32.080 --> 01:24:33.260
Boardroom: Kaplin?

609
01:24:33.640 --> 01:24:34.980
Boardroom: Artlet?

610
01:24:34.980 --> 01:24:35.780
Ben Bartlett: Yes.

611
01:24:35.780 --> 01:24:39.439
Boardroom: Trey Gubb? Aye. O'Keefe? Yes. Blackaby?

612
01:24:39.870 --> 01:24:48.499
Boardroom: Yes. Unapara? Yes. Humber? Yes. And Mayor Ishii? Yes. Okay, motion carries. Very good, thank you all so much!

613
01:24:48.700 --> 01:24:52.690
Boardroom: I feel like we've spent most of tonight taking roll.

614
01:24:52.690 --> 01:25:08.790
Boardroom: Alright, we are moving on to item number 15. Do we need a break, or can we push through? I think we can push through. Okay, so item number 15, it's the 1646 and 1650 Fifth Street rezoning and Associated General Plan Amendments.

615
01:25:10.230 --> 01:25:16.629
Boardroom: And here you are again. Thank you, good evening again, Jordan Klein. Now, joined also at the staff table.

616
01:25:16.750 --> 01:25:23.160
Boardroom: by Joshua Muller, an associate planner with our projects and policy team. Take it away, Josh.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

617
01:25:23.350 --> 01:25:24.210
Boardroom: Alright.

618
01:25:24.370 --> 01:25:33.560
Boardroom: Good evening, Mayor Ishii, council members, and members of the public. My name is Joshua Muller, and I am an Associate Planner with the Planning and Development Department.

619
01:25:33.760 --> 01:25:45.980
Boardroom: On October 20th, 2025, the Planning and Development Department received General Plan and Zoning map amendment applications from the property owner of 1650 5th Street.

620
01:25:45.980 --> 01:25:59.890
Boardroom: to rezone 1646 and 1650 Fifth Street to entirely MUR, mixed-use residential, and to change the general plan land use designation of those two properties to solely be mixed-use.

621
01:26:00.260 --> 01:26:06.200
Boardroom: The subject properties both have single-family residences.

622
01:26:06.360 --> 01:26:23.119
Boardroom: with accessory storage structures, and the applicant has proposed a residential development project in a separate application with the city. As residential uses are not permitted in the Muley Mixed-Use Light Industrial Zoning district, which is the light blue portion on

623
01:26:23.120 --> 01:26:36.299
Boardroom: the existing zoning designation slide there. The owner is unable to utilize the entirety of the parcel for a residential development project unless the map and the plan amendments are adopted.

624
01:26:36.350 --> 01:26:52.030
Boardroom: And at the regular meeting on March 4th, 2026, the Planning Commission unanimously approved a recommendation to the City Council to adopt an amendment to the zoning map to rezone the portions of the subject parcels from Muley to

625
01:26:52.030 --> 01:26:56.600
Boardroom: MUR, and to make the conforming amendments to the General Plan

626
01:26:56.640 --> 01:27:08.520

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: land use map, and the West Berkeley Plan land use map. The slide shows what the proposed zoning designation will look like. You can see the full parcel is the dark blue now.

627
01:27:08.960 --> 01:27:16.600
Boardroom: And, staff's recommending that the Council conduct a public hearing, and upon conclusion, adopt a resolution.

628
01:27:16.730 --> 01:27:30.910
Boardroom: to amend the general plan land use map, and change the existing manufacturing and mixed-use designations to solely mixed-use, and amend the West Berkeley plan for the conforming amendments as well.

629
01:27:30.950 --> 01:27:43.320
Boardroom: and to adopt an ordinance amending the zoning map to rezone the portions of the subject parcels from mixed-use light industrial to mixed-use residential, MUR.

630
01:27:43.760 --> 01:27:51.850
Boardroom: That is my presentation, and I'm happy to answer any questions the Council or the Mayor has. Thank you. Thank you. Thank you very much. Any questions?

631
01:27:55.400 --> 01:27:58.480
Boardroom: Okay… is… oh.

632
01:27:58.640 --> 01:28:02.820
Boardroom: Are you moving for a question? No, okay. Is there any public comment on this?

633
01:28:04.210 --> 01:28:05.169
Boardroom: Come on up.

634
01:28:11.520 --> 01:28:29.450
Boardroom: Hello, my name is Matthew Wadland, I'm the applicant. Speaking to… just pull it up, yeah, you can move it, so it's… there you go. I am the… Matthew Wadland, I am the applicant, the owner of 1650. Two points. When I initially applied for this, I contacted the owner

635
01:28:29.640 --> 01:28:33.960
Boardroom: 1646, and they,

636
01:28:34.030 --> 01:28:41.470

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: happily allowed me to include them in it. I also contacted the City of Berkeley. They are the owner of the adjacent parcel.

637
01:28:41.470 --> 01:28:55.120
Boardroom: On the other side, 1654, they were not able to, for unknown reasons, join this very simple move. It's not actually a zoning change, it's just a realignment.

638
01:28:56.320 --> 01:29:01.920
Boardroom: The reason it's significant is kind of twofold for the city not being involved. It makes it so that

639
01:29:02.090 --> 01:29:20.100
Boardroom: a property adjacent, my property, now has to deal with a property that has two different zones. And this is applicable when you go to do a project. You're always asked what's on either side, and what's on either side actually makes a difference as to what you can do. For example, if you have commercial on

640
01:29:20.200 --> 01:29:27.659
Boardroom: one side in that zone, there's a zero, setback. If you have residential, then the zone setback changes, so…

641
01:29:28.050 --> 01:29:41.269
Boardroom: for those two reasons, also, there's a house there now, it doesn't make sense that that house is in the Muley. The city had a very easy opportunity to change that, join this particular application, and…

642
01:29:41.290 --> 01:29:49.489
Boardroom: declined to do that. So, I'd ask that you all consider getting 1654, the city-owned property.

643
01:29:49.560 --> 01:29:56.009
Boardroom: to join this and do it all at once. Otherwise, the city, at some point, is going to probably have to do the same process

644
01:29:56.270 --> 01:30:00.130
Boardroom: Which took me about 6 months, and $10,000 to do.

645
01:30:01.090 --> 01:30:03.680
Boardroom: thank you.

646
01:30:04.880 --> 01:30:05.910

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Thank you.

647
01:30:06.990 --> 01:30:08.180
Boardroom: Anyone else?

648
01:30:08.740 --> 01:30:15.800
Boardroom: Anybody online? Let's see… anybody… there's no hands raised online.

649
01:30:18.560 --> 01:30:22.010
Boardroom: Alright, are any comments from Council?

650
01:30:25.040 --> 01:30:26.909
Boardroom: Yes, go ahead, Councilmember.

651
01:30:27.510 --> 01:30:30.060
Boardroom: Thank you, Madam Mayor. Yeah, I just have some…

652
01:30:30.200 --> 01:30:44.999
Boardroom: short comments. I want to thank Director Klein and Joshua Muller for their work on this. It's a minor change that nonetheless is very helpful. It serves to simply rectify what is effectively a small geographical surveying artifact, apparently.

653
01:30:45.120 --> 01:30:51.320
Boardroom: This had unanimous support from the Planning Commission, and I'm happy to move it forward. I would make the motion to approve

654
01:30:51.570 --> 01:30:56.339
Boardroom: to, adopt the resolution. I think we need to vote to close the public hearing. Yeah.

655
01:30:57.650 --> 01:31:02.840
Boardroom: Do you want to make that motion? I will move to close the public hearing first. Second.

656
01:31:03.050 --> 01:31:04.220
Boardroom: Can we take the role?

657
01:31:05.170 --> 01:31:10.670
Boardroom: Okay, to, close the public hearing, Councilmember Kisarwani? Yes. Taplin?

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

658
01:31:11.970 --> 01:31:12.850
Boardroom: Bartlett.

659
01:31:13.440 --> 01:31:14.200
Ben Bartlett: Yes.

660
01:31:14.550 --> 01:31:15.370
Boardroom: Drago?

661
01:31:15.970 --> 01:31:24.760
Boardroom: Aye. O'Keefe? Yes. Blackaby? Yes. Munapara? Yes. Humbert? Yes. And Mayor Ishii? Yes.

662
01:31:25.490 --> 01:31:43.790
Boardroom: Public hearing is closed. Thank you very much. I see that Councilmember Blackby has a comment, perhaps? Yeah, one quick question for the City Manager, question about the 1654 5th Street piece, and my understanding is we currently have, transitional housing, sorry, transitional housing units located on that parcel.

663
01:31:43.790 --> 01:32:01.230
Boardroom: And it's still… it's in use for that purpose, and at this point, we intend to maintain, the use for that purpose, and so it seems… I understand the applicant's, question, but it also feels like the city… we're using it for that purpose, and we're not prepared at this point to…

664
01:32:01.230 --> 01:32:10.440
Boardroom: transfer that parcel, and so, anyway, so it felt, like, a little premature to go through the rezoning process, but I just thought maybe you'd want to comment on that. Sure, thank you, Councilmember Blackbee.

665
01:32:10.440 --> 01:32:24.280
Boardroom: That is correct. We do have a house on that property that's currently used as transitional housing for formerly homeless people, and has been for some time. HHCS manages that through a contract. So, you know.

666
01:32:24.890 --> 01:32:35.379
Boardroom: It would be beneficial at some point for the city to go through a similar process, you know, but because it's currently in use, it's not a pressing issue for the city right now to move forward in that direction.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

667
01:32:36.000 --> 01:32:42.440
Boardroom: could be a policy question that gets asked at a later time. There would also be some cost associated with it and some time, as you heard.

668
01:32:43.390 --> 01:32:50.910
Boardroom: Okay, so something for potential future consideration, but at least the time… at this point, sort of, you know, we're not prepared to do that. That's correct. Okay, thank you.

669
01:32:51.190 --> 01:33:00.889
Boardroom: Thank you. Thanks, Councilmember. Okay, is there… okay, would you like to make that motion? Yeah. Yeah, I'd like to revive my motion. Okay. Is there a second? Second.

670
01:33:01.000 --> 01:33:02.820
Boardroom: Okay, can we take the roll on that, please?

671
01:33:03.290 --> 01:33:05.170
Boardroom: Okay? To,

672
01:33:05.630 --> 01:33:14.050
Boardroom: approve a resolution to amend the General Plan, and amend the West Berkeley Plan, and adopt an ordinance amending the zing map.

673
01:33:14.280 --> 01:33:24.700
Boardroom: For… 1646 and 1650 5th Street. On the motion, Councilmember Kesarwani. Yes. Taplin? Aye.

674
01:33:25.000 --> 01:33:26.110
Boardroom: Bartlett?

675
01:33:26.110 --> 01:33:26.860
Ben Bartlett: Yes.

676
01:33:27.130 --> 01:33:29.799
Boardroom: Drago? Aye. O'Keefe? Yes.

677
01:33:29.930 --> 01:33:35.970
Boardroom: Blackaby? Yes. Unapara? Yes. Humbert? Yes. And Mary Ishii? Yes.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

678
01:33:36.250 --> 01:34:00.830
Boardroom: Okay, thank you so much! Thank you, everybody! Alright, so, I realize I meant to comment on the information report, so I will just say, if you haven't all checked that out, it's an incredible, study. There's an evaluation of Berkeley's encampment resolution slash RV buyback program. Our RV buyback program was incredibly successful, and so, I do want folks to just make sure you take a look at that if you hadn't already.

679
01:34:00.860 --> 01:34:06.280
Boardroom: The researcher, Margot Cushel, Dr. Margo Kushel, who worked on it, is

680
01:34:06.280 --> 01:34:24.400
Boardroom: amazing. I'm a huge fan of hers, and, she's the one that spoke at our Mayor's Conference, Alameda County Mayor's Conference, that I had invited you all to. I think some of you were there. So, anyway, make sure you check that out. And, I also want to see if there's any public comment, again, for items not listed on the agenda.

681
01:34:28.290 --> 01:34:44.460
Boardroom: I actually was going to mention the report. I have not read it yet, but the RV buyback program was incredibly successful with the motel conversion. This is just for off… off agenda? That is off the agenda. It's on the… it's an affirmation item, so…

682
01:34:44.930 --> 01:35:02.410
Boardroom: Oh, okay. Okay. Yeah. But we didn't get a chance to speak on that. We had, but I didn't get a chance to speak on it, but it was… we have a time earlier for consented information items only. Oh, thank you. So this is… Thank you. So, just in closing, it's unfortunate, that…

683
01:35:02.520 --> 01:35:06.839
Boardroom: We couldn't receive Measure… County Measure W funds so that…

684
01:35:07.000 --> 01:35:13.619
Boardroom: But staff had so well planned a second RV buyback program. It's really unfortunate.

685
01:35:14.390 --> 01:35:29.590
Boardroom: And whether it's Ephesian or anything else, other things that have been done, as much as you hear us complain, maybe myself included, about the lack of affordable housing to accommodate people, there is so much more than there was in the past.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

686
01:35:29.780 --> 01:35:32.560
Boardroom: So much has been done to provide

687
01:35:32.580 --> 01:35:40.020
Boardroom: for the homeless, and bring them out of homelessness in our community. It's unfortunate. We're going back in time.

688
01:35:40.020 --> 01:35:54.170
Boardroom: And I don't know, what's gonna happen when our Shelter Plus Continuum of Care subsidies, are, are lost, and, we clearly have to look towards non-governmental options. Thank you.

689
01:35:54.350 --> 01:35:56.690
Boardroom: Thank you. Anyone online?

690
01:35:57.510 --> 01:36:01.520
Boardroom: Okay, I will see if there is a motion to adjourn.

691
01:36:01.880 --> 01:36:03.420
Boardroom: So moved. Second.

692
01:36:03.840 --> 01:36:05.290
Boardroom: Can we take the roll, please?

693
01:36:05.460 --> 01:36:09.950
Boardroom: Okay, to adjourn the meeting, Councilmember Kesarwani? Yes. Taplin?

694
01:36:09.950 --> 01:36:10.680
Terry Taplin: Alright.

695
01:36:11.070 --> 01:36:11.960
Boardroom: Bartlett.

696
01:36:12.100 --> 01:36:12.810
Ben Bartlett: Yes.

697
01:36:13.330 --> 01:36:22.710
Boardroom: Yes. Trega? Aye. O'Keefe? Yes. Blackaby? Yes. Unapara? Yes. Humbert? Yes. And Mary Ishii? Yes.

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

698
01:36:23.010 --> 01:36:26.670
Boardroom: Okay, meeting is adjourned. Meeting is adjourned. Thanks, everyone.

699
01:36:30.320 --> 01:36:31.020
Boardroom: Pretty ear.

Unofficial Text File